

Pastoral (Amendment)

Measure 1982

1982 No. 1

A MEASURE passed by the General Synod of the Church of England to amend the Pastoral Measure 1968 and make provision for enabling that Measure to be extended to the Isle of Man, to make provision for enabling a new body to be established to replace the Advisory Body for Redundant Churches and the Redundant Churches Fund and to amend section 5(3) of the Parsonages Measure 1938.

[23rd July 1982]

PART I

AMENDMENTS OF THE PASTORAL MEASURE 1968

Procedure for making pastoral schemes and orders

1.—(1) In the Pastoral Measure 1968 (hereinafter referred to as “the Measure”), in section 2(1), (general duties of Pastoral Committee), for the words “or agreed with the bishop” there shall be substituted the words “the bishop or as the Committee consider necessary”, and the words “Part II or Part III of” shall be omitted.

Duties of
Pastoral
Committees.
1968 No. 1.

(2) After section 2(1) of the Measure there shall be inserted—

“(1A) Where the Pastoral Committee decide on their own initiative to review the arrangements for pastoral supervision in the diocese or a part thereof, they shall consult the bishop and give him particulars of the matters which they intend to consider and of the benefices which will be affected.”

(3) After section 2(2) of the Measure (matters to which the Committee must have regard), there shall be inserted—

“(3) The diocesan synod may from time to time indicate to the Pastoral Committee any matters of diocesan policy to which the Committee shall also have regard.”

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Formulation,
etc. of draft
proposals.

Amendment
of proposals,
etc.

2. For section 3 of the Measure there shall be substituted the sections set out in Part I of Schedule 1 to this Measure.

3.—(1) In section 4(1) of the Measure (amendment of proposals), for the words from “may” to the end there shall be substituted the words “the bishop, in consultation with the Pastoral Committee, shall consider any comments made by the Commissioners with respect to any of the proposals”.

(2) In section 4(2) of the Measure (cases in which the Commissioners must consult the Advisory Board), after paragraph (b) there shall be inserted the words “or

(c) for the care and maintenance of the church by the Redundant Churches Fund”;

(3) After section 4(2) of the Measure there shall be inserted—

“(2A) After the provisions of the foregoing subsections have been complied with the Commissioners may make, with the agreement of the bishop given after consultation with the Pastoral Committee, such amendments of the proposals as appear to them desirable.”

(4) In section 4(3) of the Measure (preparation of draft scheme or order), for the words “subsection (1)” there shall be substituted the words “subsection (2A)”, the words “Part II or Part III of” shall be omitted and at the end of that subsection there shall be inserted

“(iii) the Commissioners shall not be obliged to prepare a draft order to give effect to a proposal to create an archdeaconry or a proposal that the income of the endowments of a benefice, or part thereof, shall be paid to the income account of the diocesan stipends fund.”

Notice and
publication of
draft schemes
and orders.

4.—(1) At the beginning of section 5(1) of the Measure (service of copy of draft scheme, etc. on interested parties), there shall be inserted the words “Subject to subsection (1A) of this section” and after that subsection there shall be inserted—

“(1A) Subsection (1) of this section shall not apply in relation to any interested party who in accordance with section 3A(2) of this Measure has relinquished his right to receive a copy of the draft scheme or order in question and the notice for which the said subsection (1) provides.”

(2) In section 5(2) of the Measure (provision relating to draft scheme which provides for declaration of redundancy, etc.)—

(a) at the end of paragraph (a) there shall be inserted the words “and on the Commonwealth War Graves Commission and, if the draft scheme provides for the care and maintenance of the redundant building by the Redundant Churches Fund, on that Fund”; and

(b) for the words "requirements of" there shall be substituted the words "provisions of paragraph (a) hereof so far as it relates to the said Commission and".

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(3) In section 5(3) of the Measure (copy of certain notices to be affixed on or near church door), for the words from "the parish church" to the end there shall be substituted the words "every church in the parish and every building licensed by the bishop for public worship in the parish"

5.—(1) For section 6(1) of the Measure (amendment of draft scheme or order) there shall be substituted—

Amendment of draft schemes and orders.

"(1) The Commissioners—

(a) at the request of the bishop made after consultation with the Pastoral Committee, or

(b) as a result of any representations,

may amend any draft scheme or order prepared by them under this Part of this Measure, but any amendments made as a result of any representations shall only be made with the agreement of the bishop given after consultation with the Committee."

(2) In section 6(2) of the Measure (treatment of amended draft schemes and orders), after the word "section" there shall be inserted the words "(with the omission of subsection (1A) thereof)".

6. For section 7 of the Measure, there shall be substituted the section set out in Part II of Schedule 1 to this Measure.

Submission to bishop and making of scheme or order.

7.—(1) For section 8(1) to (3) of the Measure there shall be substituted—

Confirmation of schemes by Order in Council.

"(1) As soon as possible after a scheme is submitted for confirmation by Her Majesty in Council under section 7 of this Measure the Commissioners shall—

(a) so far as practicable serve on the persons who duly made written representations with respect to the draft scheme notice of such submission, together with a statement in writing of the Commissioners' decision with respect to those representations and the reasons therefor; and

(b) serve on any other persons, being interested parties, notice of such submission;

and a notice under this subsection shall inform persons who have duly made such representations of their rights, on obtaining the leave of the Judicial Committee of the Privy

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Council, to appeal to Her Majesty in Council and shall specify the date, being a date not less than twenty-eight days after the service of the notice, on or before which notice of intention to apply for such leave must be given.

When submitting a scheme for confirmation by Her Majesty in Council the Commissioners shall inform the Clerk of the Privy Council of the date which is to be specified in notices under this subsection relating to the scheme.

(2) Any person who has duly made written representations with respect to the draft scheme may appeal to Her Majesty in Council against the scheme or any provisions thereof, but only with the leave of the Judicial Committee of the Privy Council.

(3) The provisions of Schedule 2 to this Measure shall apply to applications for leave to appeal, and to appeals, to Her Majesty in Council under this section.

(3A) If—

- (a) no notice of intention to apply for leave to appeal is given on or before the date specified in subsection (1) of this section, or
- (b) no application for such leave is made within the period prescribed by paragraph 2A of Schedule 2 to this Measure, or
- (c) the Judicial Committee refuses to grant such leave, or
- (d) the appeal stands dismissed for non-prosecution by virtue of paragraph 8 of that Schedule,

Her Majesty may by Order in Council confirm the scheme."

(2) In section 8(4) of the Measure (hearing of appeal), for the words from the beginning to "Privy Council", where first occurring, there shall be substituted the words "If leave to appeal is granted the Judicial Committee of the Privy Council shall hear the appeal".

(3) Section 8(8) of the Measure (application of Schedule 2) shall be omitted.

Publication of notice of confirmation or making of scheme or order.

8. (1) Section 9(1) of the Measure (notice of confirmation of scheme or making of order to be published in the London Gazette) shall be omitted.

(2) In section 9(2) of the Measure (copy of Order in Council confirming scheme and of the bishop's publication of notice of confirmation or making of scheme or order to be sent to the interested parties), for the words "such Order in Council or order" there shall be substituted the words "Order in Council by which a scheme is confirmed under section 8 of this Measure and of every order made by the bishop under section 7 thereof".

9.—(1) In section 10(1) of the Measure (validity of schemes and orders), the words “and notified in the London Gazette as aforesaid” and the words “and notified as aforesaid” shall be omitted.

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Validity
and operation
of schemes
and orders.

(2) In section 10(2) of the Measure (coming into operation of the scheme or order), for the words “notice thereof is given in the London Gazette” there shall be substituted the words “the scheme is confirmed by Order in Council under section 8 of this Measure or, as the case may be, the order is made by the bishop under section 7 thereof”.

10. In section 11(1)(b) of the Measure (certain proposals not to be submitted without consent of the archbishop), for the words “section 3(6)” there shall be substituted the words “section 3A(1)” and the words from “and, if” to the end shall be omitted.

Requirement
to obtain
archbishop's
consent
abolished.

11.—(1) In section 12(1) of the Measure (constitution of joint pastoral committee by bishops), after the word “Measure” there shall be inserted the words “then, if the Dioceses Commission gives its consent”.

Joint Pastoral
Committees.

(2) In section 12(2) of the Measure (membership of joint pastoral committees), after the word “diocese”, where first occurring, there shall be inserted the words “together with a member of the Dioceses Commission nominated by that Commission”.

12.—(1) In section 13(1) of the Measure (bishop may formulate and submit proposals for the holding of benefices in plurality)—

Extension of
bishop's power
to formulate,
etc. proposals
on certain
matters.

(a) the words from “for” to “proposals”, where next occurring, shall be omitted;

(b) after the words “pastoral order” there shall be inserted the words “not being proposals to dissolve an archdeaconry or proposals for the exercise of any power under section 27(1) or 31(1)(d) of this Measure”; and

(c) for paragraph (c) there shall be substituted—

“(c) a copy of the draft order shall be sealed by the Commissioners and submitted by them to the bishop who may by applying his seal thereto make the order under section 7(4) of this Measure.”.

(2) In section 13(2) of the Measure (proposals affecting more than one diocese), for the words “the benefices” there shall be substituted the words “any benefices”.

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(3) Section 13(3) (proposals relating to matters connected with pluralities), section 13(4) (proposals relating to detached areas of parishes) and section 13(5) (proposals for substituting another church for parish church or altering name of benefice or parish), shall be omitted.

Contents and effect of pastoral schemes and orders

**Holding of
benefices in
plurality.**

13.—(1) In the proviso to section 17(2) of the Measure (termination of provisions for the holding of benefices in plurality), in paragraph (a), after the word “concerned” there shall be inserted the words “and on the Commissioners”, and in paragraph (b), after the word “councils”, where first occurring, there shall be inserted the words “the Commissioners”.

(2) At the end of section 17(4) of the Measure (resignation of benefice held in plurality), there shall be inserted the words “but the Commissioners may by instrument make such consequential amendments of the pastoral scheme which provided for the holding of the benefices in plurality as they think necessary”.

**Team
ministries.**

14.—(1) For section 19(1) of the Measure (establishment of team ministry) there shall be substituted—

“(1) A pastoral scheme may make provision for the establishment of a team ministry for the area of any benefice, and such a scheme shall provide—

(a) for the sharing of the cure of souls in that area by the incumbent of the benefice which, if it is not or would not otherwise be a rectory, shall be a rectory and one or more other ministers who shall have the title of vicar and a status equal to that of an incumbent of a benefice; and

(b) for the pastoral care of persons in that area by those who are to share the cure of souls therein together with all other persons who are from time to time authorised by licence or permission of the bishop to serve in that area as members of the team.

The persons who are to share the cure of souls in the said area shall constitute the team chapter, and the team chapter together with the other person referred to in the scheme by virtue of paragraph (b) of this subsection shall constitute the team.”

(2) In section 19(4) of the Measure (presentation of rector, choice of vicars, etc.)—

(i) in paragraph (a) for the words “or collated to the benefices” there shall be substituted the words “to the benefices or the benefices collated to the rector, as the circumstances require ;

(ii) for paragraph (b) there shall be substituted—

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“ (b) the vicar or vicars shall be chosen in accordance with paragraph 1A of that Schedule, shall be appointed to the office by licence of the bishop under seal and, unless the bishop otherwise directs, shall be publicly admitted in a church in the area.” ; and

(iii) paragraph (c) shall be omitted.

(3) After section 19(4) of the Measure there shall be inserted—

“ (4A) Where a pastoral scheme designates a person as the first holder of the office of vicar in a team ministry, the bishop shall offer to issue a licence appointing him to the office, and if that person does not accept the offer within one month after it is made to him, the designation shall cease to have effect.”

(4) In section 19(9) of the Measure (meetings of team chapter), for the words from the beginning to “ intervals ” there shall be substituted the words “ The rector in a team ministry shall convene meetings of the team at regular intervals for the purpose of discussing and reaching a common mind on all matters of general concern or special interest to the team ministry ”.

(5) In section 19(10) of the Measure (application of certain provisions of Schedule 3), for the word “ (4) ” there shall be substituted the words “ (5) and (6) ” and for the words “ group council ” there shall be substituted the words “ team council and empowering that council to exercise certain powers ”.

(6) In section 19(11) of the Measure (extension of operation of team ministries), after the word “ are ” there shall be inserted the words “ or are to be ” and the words “ the cure of souls in ” shall be omitted.

15.—(1) For section 20(5) of the Measure (application of certain provisions of Schedule 3), there shall be substituted— Group ministries.

“ (5) Paragraph 3(4) of Schedule 3 to this Measure shall apply for the establishment of group councils and for conferring certain powers on such a council.”

(2) In section 20(6) of the Measure (inclusion in a group ministry of team ministry benefice), the words “ and the provisions of Schedule 3 therein referred to ” shall be omitted, and after that subsection there shall be inserted—

“ (7) In this section, except subsections (2) and (3), ‘ incumbent ’ includes a priest in charge.”

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Status of new
benefices.

16. For section 22(1) of the Measure (status of certain benefices), there shall be substituted—

“(1) Where a pastoral scheme provides for the union of two or more benefices one of which is a rectory, the new benefice created by the union shall be a rectory.

(1A) Where a pastoral scheme provides for the dissolution of a rectory, otherwise than as a result of a union of benefices, any new benefice created in consequence of the dissolution shall, if the scheme so provides, be a rectory.”.

Designation,
etc. of certain
incumbents.

17. In section 23(1) of the Measure (designation of incumbent of certain benefices)—

(a) the words “by the union of two or more benefices” shall be omitted;

(b) for the words “of the benefices” there shall be substituted the word “benefice”; and

(c) for the words “union takes effect” there shall be substituted the words “new benefice comes into being”.

Operation of
schemes
dispossessing
clergy.

18. In section 24(3) of the Measure (coming into operation of provision which will or may have the effect of vacating a benefice, etc.), for the words from “notice” to “Gazette” there shall be substituted the words “date on which the scheme is confirmed by Order in Council under section 8 of this Measure”, for paragraph (a) of the proviso there shall be substituted—

“(a) this subsection shall not apply to a benefice which is dissolved if the incumbent of that benefice is designated by the scheme as the first incumbent of any benefice created or affected by the scheme or as the first holder of any office of vicar in a team ministry established by the scheme, nor shall it apply to an office of vicar in a team ministry which is abolished if the holder of that office is designated by the scheme as the first incumbent of any benefice created or affected by the scheme or as the first holder of any office of vicar in a team ministry established by the scheme;”;

and in paragraph (b) of the proviso, for the word “publication” there shall be substituted the words “confirmation of the scheme”.

Assistant
curates, etc.

19. Section 26 of the Measure (provision by pastoral scheme for employment of assistant curates, deaconesses, etc.) shall be omitted.

20.—(1) For section 27(1) of the Measure (provisions of scheme as to parish churches), there shall be substituted—

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Provisions as to parish churches.

“ (1) A pastoral scheme may, in relation to any parish, including a new parish to be created by the scheme or a parish the area of which is to be altered thereby—

- (a) designate as the parish church or as an additional parish church, or as parish churches or additional parish churches, any church or churches in the parish ;
- (b) provide for a church in the parish which immediately before the scheme comes into operation is a parish church to cease to be a parish church ;
- (c) provide for a new church and for it to become, after its approval by the Commissioners as suitable to be a parish church and its consecration, the parish church, or an additional parish church, of the parish either in substitution for an existing parish church or otherwise.

(1A) The designation by a pastoral scheme as a parish church of a building which immediately before the scheme comes into operation is not a parish church shall not take effect unless and until it has been approved by the Commissioners as suitable to be a parish church and, if necessary, the building has been consecrated.

(1B) If the area of a parish is altered by a pastoral scheme but no provision with respect to the churches in that area is made by the scheme, every church in that area shall have the same status on and after the date on which the scheme comes into operation as it had immediately before that date.”.

(2) In section 27(3) of the Measure (provisions which apply where a parish has more than one parish church)—

- (a) for the words from the beginning to “ aforesaid ” there shall be substituted the words “ Where by virtue of a designation made by a pastoral scheme or otherwise a parish has more than one parish church ” ; and
- (b) after the word “ churches ”, where last occurring, there shall be inserted the words “ or churchwardens ”.

(3) Section 27(4) of the Measure (substitution by pastoral scheme of another church for a parish church) and section 27(5) thereof (provision by such scheme for a new church and for it to become a parish church) shall be omitted.

(4) In section 27 (6) of the Measure (performance of ecclesiastical offices in church designated as or becoming a parish church), after the word “ and ”, where secondly occurring, there shall be inserted the words “ a pastoral scheme ”.

PART I
Redundant
churches.

21. In section 28(1) of the Measure (declaration of redundancy in respect of church, etc. which the Commissioners are satisfied is not required as a parish church, etc.), the words "the Commissioners are satisfied", in both places where they occur, shall be omitted.

Places of
worship in
certain
parishes.

22. For section 29 of the Measure there shall be substituted the section set out in Part III of Schedule 1 to this Measure.

Use of certain
churchyards
and burial
grounds.

23.—(1) For section 30(1) of the Measure appropriation by scheme of land annexed or belonging to church, etc. to certain uses), there shall be substituted—

"(1) Subject to the following provisions of this section, a pastoral scheme may provide for the appropriation of the whole or any part of—

(a) a churchyard or other land annexed or belonging to a church or to a parish church cathedral within the meaning of the Cathedrals Measure 1963, or

(b) any burial ground vested in the incumbent of the benefice but not annexed or belonging to a church, or

(c) any other burial ground which is subject to the jurisdiction of the bishop of any diocese,

to such use or uses as may be specified or generally described in the scheme, and the scheme may provide for the disposal of any such property for such use or uses or without limitation of use.

(1A) Subsection (1) of this section shall not apply to a churchyard or other land annexed or belonging to a church to which a declaration of redundancy relates unless the scheme by which provision was made for the use, the care and maintenance, the vesting in the Diocesan Board of Finance or the demolition of the church contained no provision for dealing with the land which is to be the subject of the proposed scheme.

(1B) In the case of a churchyard or other land annexed or belonging to a church or a burial ground adjacent to a church, the pastoral scheme shall make such provision as appears to the bishop and the Commissioners to be desirable for safeguarding the use and amenities of the church or to be necessary for preserving a right of access to any grave in that land or burial ground."

(2) In section 30(3) of the Measure (scheme may also make provision for vesting of the property, etc.), after the word "way" there shall be inserted the words "and other easements".

24.—(1) For section 31 of the Measure (provisions of pastoral schemes relating to parsonage houses) there shall be substituted the section set out in Part IV of Schedule 1 to this Measure. PART I
Parsonage
houses.

(2) Section 18(6) and (7) of the Endowments and Glebe Measure 1976 (which amended the said section 31) are hereby repealed. 1976 No. 4.

25.—(1) In section 33(3) of the Measure (restrictions on power to divert income of the endowments of a benefice), the words “the endowments or” shall be omitted, for paragraph (c) there shall be substituted— Provisions as
to endowment
income, etc.

“ (c) where the aggregate of the income derived from the following sources, namely, the income of the endowments of the benefice (disregarding any gift or bequest made during the existing incumbency), any guaranteed annuity payable in respect of the benefice under the Endowments and Glebe Measure 1976 and any personal grant to which the incumbent of the benefice is entitled under that Measure, is not to be reduced below the amount thereof when the incumbent was admitted ; or ” ; 1976 No. 4.

and for the words from “that the income” to the end there shall be substituted the words “that the income derived from the sources mentioned in paragraph (c) above is sufficient to support the incumbent”.

(2) In section 33(5) of the Measure (application of certain moneys held for purposes connected with parsonage house of dissolved benefice), the word “whether” and the words “or otherwise” shall be omitted, and for the words from “(a)” to the end there shall be substituted the words “as references to the new benefice created by the union”.

(3) After the said section 33(5) there shall be inserted—

“ (5A) Notwithstanding anything in section 5 of the Parsonages Measure 1938 (application of moneys derived from sales, etc. of benefice property), a pastoral scheme may provide that any moneys arising from any sale or exchange under that Measure of any part of the property of a benefice specified in the scheme, or so much of those moneys as may be so specified, shall— 1938 No. 3.

- (a) be held by the Commissioners for the benefit of any other benefice so specified ; or
- (b) be paid into the capital account of the diocesan stipends fund ; or
- (c) to be paid into the diocesan pastoral account ; or

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(d) be applied towards the provision, restoration, improvement or repair of a church or a place of worship within the meaning of section 46 of this Measure or a parsonage house or a house for a vicar in a team ministry or an assistant curate."

Extension of
pastoral
schemes to
other
dioceses.

26. In section 35(1) of the Measure (cases in which schemes may apply to two or more dioceses), after paragraph (b) there shall be inserted—

"(bb) for the transfer of the area of a benefice from the diocese in which it is to the other diocese ;".

Representa-
tion in the
General
Synod.

27. Section 37 of the Measure (for purpose of representation in General Synod no account to be taken of alteration of diocesan boundaries by pastoral scheme until next general election) shall be omitted.

Powers
exercisable by
pastoral
order.

28.—(1) Section 38 of the Measure (powers exercisable by pastoral order) shall be amended as follows.

(2) Paragraph (g) (power to make provision with respect to matters under section 26 of the Measure) shall be omitted.

(3) For paragraph (h) there shall be substituted—

"(h) the powers under section 27(1) to make provision with respect to churches ;".

(4) In paragraph (i) (powers under section 31 as respects certain houses), the words "and assistant curates" shall be omitted.

(5) At the beginning of paragraph (k) (power to provide for exercise of patronage of benefices held in plurality) there shall be inserted the words "the power under section 32(1) to provide for the exchange or transfer of rights of patronage of any benefice or church and".

(6) At the end of paragraph (l) (power under section 33(2) to provide for payment to diocesan stipends fund of income of endowments of a benefice), there shall be inserted the words "and the power under section 33(5A) to make provision as to the manner in which moneys arising from any sale or exchange of the property of a benefice under the Parsonages Measure 1938 are to be dealt with".

1938 No. 3.

(7) In paragraph (m) (powers under section 35 so far as they relate to the holding of benefices in plurality), after the word "relate" there shall be inserted the words "to altering the boundaries between a parish or extra-parochial place in one diocese and a parish or extra-parochial place in another, but

not so as to transfer from any benefice or parish any church used for public worship, and the powers under that section so far as they relate ”.

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(8) In the provision which immediately follows paragraph (m) (application of certain provisions of the Measure to pastoral orders), for the words “ section 27 (6) ” there shall be substituted the words “ section 17(4), section 27(6) and (7) ”.

29. In section 39(1) of the Measure (power to include supplementary provisions in schemes and orders), for the words “ and the bishop or bishops concerned ” there shall be substituted the words “ with the agreement of the bishop or bishops concerned given after consultation with any Pastoral Committee (including a Joint Pastoral Committee) concerned ”.

Supplementary provisions of pastoral schemes, etc.

Redundant churches

30.—(1) For section 42(3) of the Measure (functions of the Advisory Board) there shall be substituted—

Advisory Board for Redundant Churches.

“(3) The functions of the said Board shall be to give information and advice to the Commissioners on or concerning the historic and archaeological interest and architectural quality of any church or part of a church to which this subsection applies, its value as part of the landscape and its overall importance.

This subsection applies to a church or part of a church as respects which the question arises whether it ought to be declared redundant, or as respects which questions arise as to its use, demolition or preservation on or in the event of its being declared redundant, and references in this subsection to a church shall be construed as including references to the curtilage and contents of the church and to any churchyard or burial ground annexed thereto.”

(2) In section 42(6) of the Measure (the Advisory Board to consult the Redundant Churches Fund on certain matters), the words “ demolished or ” shall be omitted and for the words “ money available for its preservation ” there shall be substituted the words “ estimated cost of repairing that church or part immediately and maintaining it thereafter and as to the money available for those purposes ”.

31. In section 43(3) of the Measure (duty of Diocesan Redundant Churches Uses Committee), for the words from the beginning to “ Committee ” there shall be substituted the words “ The only duty of the said Committee shall be ”.

Diocesan Redundant Churches Uses Committee.

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Committee with duties in respect of redundant churches.

32. In section 44(1) of the Measure (appointment of Committee by Board of Governors of Church Commissioners for certain purposes), the words "which may include persons who are not Commissioners" shall be omitted and at the end thereof there shall be inserted—

"Commissioners shall constitute a majority of the members of the Committee but, subject to that, the Committee may include persons who are not Commissioners."

Redundant Churches Fund.

33.—(1) In section 45(4) of the Measure (object of the Fund), for the words "or architectural interest" there shall be substituted the words "and archaeological interest or architectural quality".

(2) For paragraph (b) of section 45(5) of the Measure (powers of the Fund), there shall be substituted—

"(b) to permit the occasional use of property, or to grant a licence permitting the temporary use of property, vested in the Fund for purposes considered by the Fund to be suitable and, in any case, either without charge or on payment of a fee ;".

(3) In section 45(7) of the Measure (power to permit use of church, etc. for occasional worship), after the word "worship" there shall be inserted the words "(including worship by persons belonging to other Christian Churches)", and for the words from "and the consent" to the end there shall be substituted the words "after consulting the incumbent or priest in charge".

Redundancy provisions in pastoral scheme.

34. For section 46 of the Measure there shall be substituted the section set out in Part V of Schedule 1 to this Measure.

Extension of power to make provision by pastoral scheme relating to redundant church.

35.—(1) In section 47 of the Measure (other provisions by pastoral scheme for use of redundant church), for the words "or (4) of this Measure" there shall be substituted the words "of this Measure and subsections (4) to (6) of that section shall apply".

(2) Section 47 shall become subsection (1) thereof, and after that subsection there shall be inserted—

"(2) Where a pastoral scheme makes a declaration of redundancy in respect of any church or part of a church and the Commissioners are satisfied that no suitable or appropriate alternative use will be available for the redundant building when the declaration takes effect, then, if it appears to the Commissioners after consultation with the Advisory Board that the building is of such historic and

archaeological interest or architectural quality that it ought to be preserved in the interests of the nation and the Church of England, the scheme may provide for its care and maintenance by the Redundant Churches Fund.

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(3) Where a pastoral scheme provides for the care and maintenance of a redundant building or any part thereof by the said Fund, the scheme may also provide for the care and maintenance by the Fund of the whole or any part of the land annexed or belonging to the building or the church of which the building is part, and may so provide notwithstanding that the land is or has been used for burials."

36.—(1) In section 49(1) of the Measure (redundancy scheme Waiting not to be prepared for at least one year after declaration takes period. effect)—

- (a) after the word "building", where first occurring, there shall be inserted the words "together with the contents thereof";
- (b) for the words "one year" there shall be substituted the words "six months"; and
- (c) in paragraph (i) of the proviso for the words from "is" to "ground" there shall be substituted the words "or any part thereof is of such small historic and archaeological interest or of such little architectural quality or requires such extensive structural repair that the demolition thereof would not in their opinion be objectionable on any or all of those grounds".

(2) In section 49(2) of the Measure, after paragraph (a) (responsibilities of Diocesan Board of Finance), there shall be inserted—

- "(aa) the said Board may without obtaining a faculty transfer the contents of the redundant building or any of them to some other place for safe keeping until the coming into operation of the scheme;
- (ab) the said Board may with the consent of the bishop and the incumbent or priest in charge permit the redundant building to be used occasionally for worship, including worship by persons belonging to other Christian Churches, and in paragraph (c) (incumbent and churchwardens to assist in providing supervision of building against damage) after the word "incumbent" there shall be inserted the words "or priest in charge".

(3) At the end of section 49 of the Measure there shall be inserted—

- "(4) Where the Diocesan Board of Finance transfers any of the contents of the redundant building to some other

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place, the Board shall serve a notice on the Commissioners, the Advisory Board, the Redundant Churches Fund and the registrar of the diocese informing them of the transfer and giving particulars of the contents transferred and the address of the place in question, and shall serve a similar notice on any incumbent, priest in charge, parochial church council or sequestrators concerned."

Amendments
of procedure
for making
redundancy
schemes.

37.—(1) In section 50(1) of the Measure (preparation of draft scheme), for the words "one year" there shall be substituted the words "six months", and for the proviso there shall be substituted—

"Provided that if before the end of the said period of three years it is found to be impracticable to prepare the draft scheme before that period expires, and it seems to the Commissioners, after consulting the Diocesan Board of Finance, reasonable so to do, they may, with the consent of the bishop, postpone the preparation of the draft scheme for such minimum further period or periods as they find to be necessary."

(2) At the end of section 50(2) of the Measure (persons to be consulted), there shall be inserted—

"Provided that if the said Board has advised that the demolition of the redundant building or part thereof would not in their opinion be objectionable, paragraph (b) of this subsection shall not apply in relation to that building or part, as the case may be."

(3) In section 50(3) of the Measure (persons to be served with copy of draft scheme), after the word "concerned" there shall be inserted the words "the Commonwealth War Graves Commission".

(4) In section 50(8) of the Measure (certain provisions which apply to pastoral scheme apply to redundancy schemes) for the words from "the notice" to "also" there shall be substituted the words "a notice sufficiently identifying a scheme under this section and stating that it has been confirmed and where a copy of the Order in Council may be obtained shall".

Contents of
redundancy
schemes.

38.—(1) In section 51(1)(b) of the Measure (preservation of redundant building), for the words "or architectural interest" there shall be substituted the words "and archaeological interest or architectural quality".

(2) In section 51(1)(c) of the Measure (demolition of redundant building), for the words "shall provide for its demolition" there shall be substituted the words "may, with the consent of

the Diocesan Board of Finance, provide for the building or any part thereof to remain vested in that Board and to be held by them on such terms as may be specified in the scheme ;” and after that paragraph there shall be inserted—

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“ (d) if the building or any part thereof is not provided for under paragraph (c) of this sub-section, the scheme shall provide for its demolition.”

(3) After section 51(2) of the Measure there shall be inserted—

“ (2A) Where a redundancy scheme provides for the redundant building or any part thereof to remain vested in the Diocesan Board of Finance, the scheme may also provide—

(a) for appropriating the whole or any part of the land annexed or belonging to the redundant building, or the church of which it forms part, to a use or uses specified or described in the scheme ;

(b) for empowering the said Board themselves to use or hold that land or any part of it for the use or uses so specified or described or to let or license it for such use or uses as aforesaid, or partly the one and partly the other ;

(c) for empowering the Commissioners, subject to any conditions prescribed by the scheme, to sell, give or exchange that land or any part of it for such use or uses as aforesaid ;

(d) for transferring to the said Board responsibility for the care and maintenance of that land or any part of it ;

and the scheme may provide as mentioned in paragraph (d) above notwithstanding that the land is or has been used for burials.”

(4) In section 51(4) of the Measure (application of proceeds of sale or exchange of property), for the words “ either of the two ” there shall be substituted the words “ any of the three ”, after the word “ subject ” there shall be inserted the words “ to subsections (4A) to (4D) of this section and ”, and after that subsection there shall be inserted—

“ (4A) Where in exercise of the power conferred on the Redundant Churches Fund by section 45(8) of this Measure the said Fund has contributed to the cost of the care and maintenance of a church or part of a church, then, unless that church or part is vested in the said Fund, the sum contributed by the said Fund under that subsection, or so much thereof as the Commissioners may, with the agreement of the Secretary of State, determine, shall be repaid to the said Fund by the Commissioners out of the proceeds of any

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sale or exchange, or the premiums on any lease or licence, of that church or part or the site thereof under subsection (2) or (3) of this section before the net proceeds or net premiums, as the case may be, are paid or applied in accordance with subsection (4) of this section.

(4B) Where in exercise of the said power the Redundant Churches Fund has contributed to the cost of the care and maintenance of a church or part of a church, not being a church or part which is vested in the Fund, and the church or part or the site thereof is let or licensed by the Diocesan Board of Finance under the said subsection (2) or let by the Commissioners under the said subsection (3), the net rent from time to time paid thereunder shall be paid by the said Board or the Commissioners as the case may be, to the Fund until the sum contributed by the Fund, or so much thereof as the Commissioners may, with the agreement of the Secretary of State, determine, has been repaid to the Fund out of such rent.

1969 c. 38.

(4C) Where before a declaration of redundancy was made in respect of a church or part of a church that church or part was the subject of a sharing agreement under the Sharing of Church Buildings Act 1969, and on the termination of the agreement it was vested in an incumbent by section 9(3) of that Act, any contribution in the nature of capital made in accordance with the agreement by any party thereto, other than a party acting on behalf of the Church of England, or so much thereof as the Commissioners may determine, may be repaid to that party by the Commissioners out of the proceeds of any sale or exchange, or the premiums on any lease or licence, of that church or part or the site thereof under subsection (2) or (3) of this section before the net proceeds or net premiums, as the case may be, are paid or applied in accordance with subsection (4) of this section.

(4D) Where a pastoral scheme makes a declaration of redundancy in respect of a church, being a church to which section 46(1) of this Measure would have applied but for the fact that none of the conditions referred to in that subsection was fulfilled in the case of that church, then, if any subsequent redundancy scheme which makes provision for the redundant building also provides for any of the matters authorised to be included in the scheme by subsection (2)(b) or (c) of this section, subsection (2A)(b) or (c) thereof or subsection (3)(a) or (b) thereof—

(a) the proceeds of any sale or exchange made, and the premiums of any lease or licence granted, by virtue of those provisions shall be paid in accordance with paragraph (c) of section 46(1) of this Measure, and

(b) the net proceeds and net premiums shall be applied in accordance with that paragraph and not in accordance with subsection (4) of this section."

(5) In section 51(5) of the Measure (Commissioners to consult the Diocesan Board of Finance when negotiating disposal of property), after the words "sub-section (2)" there shall be inserted the words "sub-section (2A)" and the words from "and" to the end shall be omitted.

39.—(1) In section 54(1) of the Measure (Commissioners may make order declaring certain church to be redundant), after the words "his diocese" there shall be inserted the words "or any part of such a church", and after the word "church", where last occurring, there shall be inserted the words "or part".

Redundancy schemes in respect of churches closed, etc. otherwise than under the Measure.

(2) At the end of that section there shall be inserted—

"(3) Where by virtue of subsection (2) of this section a redundancy scheme provides for any of the matters mentioned in section 51(3)(a) of this Measure, section 51(4) thereof shall apply in relation to the proceeds and net proceeds of any sale or exchange, and to the premiums and net premiums on any lease, of the site or part of the site of the church or part of the church to which the scheme applies as it applies where a redundancy scheme which provides for the demolition of a redundant building also provides for any of those matters."

40. After section 57(2) of the Measure (provisions which may be made by an amending redundancy scheme), there shall be inserted—

Amendment of redundancy schemes.

"(2A) Without prejudice to the provisions of subsection (2) of this section, the Commissioners may, with the agreement of the Secretary of State, make an amending redundancy scheme which provides—

(a) for empowering the Commissioners to sell, give or exchange any property vested in the Redundant Churches Fund, being a redundant building or any part thereof or any land annexed or belonging to the building or the church of which it forms part, for any use or uses which appear to the Commissioners to be suitable and which shall be specified or described in the scheme; and

(b) for empowering the Diocesan Board of Finance to use or hold that property for such use or uses as aforesaid, or to let or license it for that use or those uses, or partly the one and partly the other;

and the scheme may for that purpose provide that immediately before the date on which the property vests in the Commissioners under section 59(2) of this Measure or in

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the Diocesan Board of Finance under section 59(3) thereof, as the circumstances require, it shall cease to be vested in the said Fund.

Before preparing a draft of a scheme which provides as aforesaid the Commissioners shall consult the said Fund.

(2B) The proceeds of any sale or exchange made, and the premiums on any lease or licence granted, by virtue of subsection (2A) of this section shall be paid to the Commissioners, and out of those proceeds or premiums, as the case may be, the sum expended by the Redundant Churches Fund on the care and maintenance of the property to which the amending redundancy scheme relates, or so much thereof as the Commissioners may, with the agreement of the Secretary of State, determine, shall be repaid to the Fund by the Commissioners, and subject as aforesaid to any order made under section 53 of this Measure, the net proceeds or net premiums, as the case may be, shall be paid and applied in accordance with section 51(4) thereof.

(2C) Where any property to which the amending redundancy scheme relates is by virtue of sub-section (2A) of this section let or licensed by the Diocesan Board of Finance, the net rent from time to time paid thereunder shall be paid by the said Board to the Redundant Churches Fund until the sum expended by the Fund on the care and maintenance of that property, or so much of that sum as the Commissioners may, with the agreement of the Secretary of State, determine, has been repaid to the Fund out of such rent."

Restoration of
redundant
building to use
as a church
building.

41. In section 58 of the Measure (provision by pastoral scheme for restoring redundant building to use as a church), after the word "building", where first occurring, there shall be inserted the words "or a part of such a building", and after the word "building", where subsequently occurring, there shall be inserted the words "or part".

Vesting of
property.

42.—(1) In section 59(1) of the Measure (vesting of property where scheme provides for demolition of redundant building, etc.), for the word "Commissioners" there shall be substituted the words "appropriate body", and at the end of that subsection there shall be inserted—

"In this subsection 'the appropriate body' means the body, being either the Commissioners or the Diocesan Board of Finance, by which in accordance with the scheme the building or part thereof in question is to be demolished."

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(2) In section 59(5) of the Measure (vesting of property where scheme provides for care and maintenance of redundant building by Redundant Churches Fund) after the word "scheme" there shall be inserted the words "or a pastoral scheme to which the said section 47 applies".

(3) After section 59(5) of the Measure there shall be inserted—

"(5A) Where a redundancy scheme provides for transferring to the Diocesan Board of Finance responsibility for the care and maintenance of any land annexed or belonging to a redundant building or the church of which it forms part, the land shall by virtue of this Measure, without any conveyance or other assurance, vest in the said Board."

43.—(1) In section 60(1) of the Measure (provision for ^{Easements.} conferring rights of way over land annexed or belonging to redundant building vested in certain bodies), for the word "over" there shall be substituted the words "or other easements over or in".

(2) In section 60(2) of the Measure (rights of way over land adjoining, etc. church declared redundant), for the words from "redundancy scheme" to "Fund", where last occurring, there shall be substituted the words "church or part vests by virtue of this Measure in the Redundant Churches Fund or the Diocesan Board of Finance, the said rights of way shall be enjoyed by the Fund or the Board, as the case may be".

44. In section 61(1) of the Measure (removal of legal effects ^{Removal of} of consecration of certain buildings), after the word "applies" ^{legal effects of} there shall be inserted the words "or is vested in the Diocesan ^{consecration.} Board of Finance in pursuance of a redundancy scheme".

45. Section 62 of the Measure (power of the Commissioners, ^{Power to} etc. to impose covenants when selling, etc. building or land) shall ^{impose and} become subsection (1) of that section and at the end thereof ^{enforce} there shall be inserted— ^{covenants.}

"(2) Where any such covenant is subsequently varied or released by agreement, any sum of money received by a Diocesan Board of Finance in consideration of the variation or release of a covenant imposed by the Board shall be paid to the Commissioners and section 51(4) of this Measure shall apply in relation to the sum so paid, and in relation to any sum of money received by the Commissioners in consideration of the variation or release of a covenant imposed by them, as it applies in relation to the proceeds of any sale or exchange under section 51(2), (2A) or (3) of this Measure."

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Trusts for
maintenance of
churchyards.

46.—(1) In section 63(1) of the Measure (trusts for repair, etc. of redundant buildings and contents)—

- (a) in paragraph (a) (building vested in Diocesan Board of Finance), after the word “making” there shall be inserted the words “or in pursuance of”; and
- (b) in paragraph (b) (building vested in Redundant Churches Fund), after the word “scheme” there shall be inserted the words “or a pastoral scheme to which section 47 of this Measure applies”;

(2) After section 63(1) of the Measure there shall be inserted—

“(1A) If and so long as any land annexed or belonging to a redundant building is vested in the Diocesan Board of Finance in pursuance of a redundancy scheme or is vested in the Redundant Churches Fund in pursuance of a redundancy scheme or a pastoral scheme to which the said section 47 applies, then, if that land comprises a churchyard, any property of a charity the purposes of which include the maintenance of the churchyard shall continue to be applicable for that purpose:

Provided that if part only of the churchyard is so vested, the said property shall only be so applicable if and to the extent that the scheme so provides.”

1960 c. 58.

(3) In section 63(2) of the Measure (saving for power to make schemes under the Charity Act 1960), for the word “subsection” there shall be substituted the word “subsections”.

Disposal of
contents of
redundant
building.

47. In section 64(3) of the Measure (vesting etc. of contents of church vested in Redundant Churches Fund by redundancy scheme—

- (a) after the words “redundancy scheme” there shall be inserted the words “or a pastoral scheme to which section 47 of this Measure applies”;
- (b) after the words “Churches Fund” there shall be inserted the words “or where a redundancy scheme provides for a church or part of a church to remain vested in the Diocesan Board of Finance”; and
- (c) after the word “Fund”, where next occurring, there shall be inserted the words “or the Board as the case may be”.

Disposal of
human
remains,
monuments,
etc.

48.—(1) In section 65(1) of the Measure (requirement to dispose of human remains, monuments, etc.), for the words from “appropriate” to the end there shall be substituted the words “use it or any part of it for any use, or carry out any development of it or any part of it, unless—

- (a) as respects the human remains, either the Secretary of State has made an order under subsection (3) of this

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section in relation to such demolition, use or development or the remains have been removed and reinterred or cremated in accordance with the provisions of Schedule 6 to this Measure ; and

- (b) any tombstones, monuments or memorials commemorating the deceased persons have been disposed of in accordance with those provisions,

and (in either case) the other requirements of that Schedule have been complied with in respect thereof."

(2) For paragraph (a) of section 65(2) of the Measure (exemptions from requirements), there shall be substituted—

"(a) to a redundant building the whole of which is to be used, without any structural alteration, as a place of religious worship for a university, college, school or other institution, or as a private chapel or monument, or for religious worship by a Church other than the Church of England, so long as the whole of it continues to be so used without any structural alteration involving the disturbance of human remains or the removal of any tombstones, monuments or memorials commemorating deceased persons ;".

(3) In section 65(2)(b) of the Measure, for the word "appropriated" there shall be substituted the word "used", and in section 65(2)(c) thereof, for the words "appropriated to use" there shall be substituted the words "which is to be used" and after the word "and" there shall be inserted the word "is".

(4) At the end of section 65(2) of the Measure there shall be inserted—

"(d) to any land which is to be used as part of a burial ground and has been conveyed to a burial authority constituted by or under an enactment."

(5) In section 65(3) of the Measure (power of Secretary of State to make order dispensing with certain requirements), after the word "bishop" there shall be inserted the words "and the Commonwealth War Graves Commission", and the word "demolition", where last occurring, shall be omitted.

(6) In section 65(4) of the Measure (power of Secretary of State to amend order), after the word "amended" there shall be inserted the words "or revoked".

(7) In section 65(7) of the Measure (further provision relating to monuments), for the word "appropriate it to" there shall be substituted the words "use it for".

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Transfer of
redundant
churches to
Secretary of
State.

49.—(1) In section 66(1) of the Measure (acquisition of certain redundant buildings by the Secretary of State)—

- (a) in paragraph (a), after the words “enter into” there shall be inserted the words “and carry out”; and
- (b) in paragraph (b) after the word “scheme” there shall be inserted the words “or a pastoral scheme to which section 47 of this Measure applies” and after the words “enter into” there shall be inserted the words “and carry out”.

(2) In section 66(2) of the Measure (provisions which apply where redundant building acquired by Secretary of State)—

- (a) in paragraph (a), after the word “way” there shall be inserted the words “or other easements”, and for the word “or”, where first occurring, there shall be substituted the words “and any rights of way”; and
- (b) in paragraph (b), for the words “and 63(1)” there shall be substituted the words “63(1) and 63(1A)”.

(3) In section 66(4) of the Measure (acquisition of certain land by the Secretary of State), after the words “enter into” there shall be inserted the words “and carry out”, and at the end thereof there shall be inserted the words “and subsection (2) of this section shall apply in relation to any land so acquired as it applies in relation to a redundant building or part thereof acquired in pursuance of subsection (1) of this section.”

Miscellaneous, administrative and general provisions

Suspension of
presentation.

50.—(1) In section 67(1) of the Measure (power of bishop to suspend right of presentation after consulting certain persons), for the words from “the patron”, where first occurring, to “concerned” there shall be substituted the words—

- “ (a) the patron of the benefice,
- (b) the parochial church council of the parish or each of the parishes concerned, and
- (c) both chairmen of the deanery synod of the deanery concerned.”;

and at the end of section 67(1) there shall be inserted—

“ When consulting any person in accordance with this subsection the bishop shall inform him of the reasons why he is considering whether he should exercise the power conferred by the subsection.”

(2) After section 67(2) of the Measure (when power may be exercised), there shall be inserted—

“(2A) Except where any consultation required by subsection (1) of this section takes place at a meeting between

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the bishop or his representative and the person to be consulted or his representative, that person shall be advised that he may, within twenty-eight days after receiving a request from the bishop for his views about the giving of the notice under that subsection, request a meeting with the bishop or his representative, and where such a request is made, the bishop shall convene a meeting which all the persons whom he is required by that subsection to consult shall be invited to attend, either in person or by representatives, for the purpose of enabling those present to consult with the bishop or his representative about the giving of the said notice."

(3) In section 67(5) of the Measure (notice to be given to various persons)—

(a) for paragraph (a) there shall be substituted—

" (a) the Pastoral Committee ; "

(b) in paragraph (b) the words from " (unless " to " patron) " shall be omitted ; and

(c) after paragraph (b) there shall be inserted—

" (bb) both chairmen of the deanery synod of the deanery concerned ; ".

51.—(1) In section 68(2) of the Measure (duties of sequestrators), the words from " if " to " patron) " shall be omitted.

Presentation suspended: appointment of priest in charge.

(2) After section 68(2) of the Measure there shall be inserted—

" (2A) Where the bishop proposes to appoint a priest in charge for any benefice to which a suspension period applies, he shall before making the appointment consult the parochial church council of the parish or each of the parishes concerned and, so far as is reasonably practicable, the patron of the benefice."

(3) In section 68(3) of the Measure (curate-in-charge may be required to reside in parsonage house), for the words " curate-in-charge " there shall be substituted the words " priest in charge " and for the word " curate " there shall be substituted the word " priest ".

52.—(1) In section 69(1) of the Measure (restriction on exercise of right of presentation after submission of certain proposals), for the words " section 3(6) " there shall be substituted the words " section 3A(1) " and for the words from " becomes vacant " to " vacancy " there shall be substituted the words " is vacant on the date on which the patron thereof receives a copy of the proposals under section 3A(2) of this Measure or becomes vacant thereafter, the patron shall not be entitled after that date or after the occurrence of the vacancy, as the case may be ".

Restrictions on presentation pending making of schemes, etc.

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(2) In section 69(2) of the Measure (further restriction on exercise of such right)—

- (i) after the word “consider” there shall be inserted the words “or has been notified under subsection (1A) of that section that the Committee intend to consider”;
- (ii) for the words from “may” to “vacancy”, where first occurring, there shall be substituted the words “upon a vacancy,”;
- (iii) for the words from “the patron”, where first occurring, to “council” there shall be substituted the words—
 - “ (a) the patron,
 - (b) the parochial church council, and
 - (c) both chairmen of the deanery synod of the deanery concerned,”

- (iv) at the end of the subsection there shall be added the words “and the requirement of section 1 of the Benefices (Exercise of Rights of Presentation) Measure 1931 that the vacancy or impending vacancy shall be notified by the bishop to the patron and the parochial church council shall, subject to the modifications made by section 69A of this Measure, apply”.

(3) After section 69(2) of the Measure there shall be inserted—

“(2A) Where a Joint Pastoral Committee has been appointed under section 12 of this Measure, the bishop may upon a vacancy or impending vacancy in any benefice which might be affected by the exercise of the powers of that Committee under sections 12 and 36, as limited (if at all) by instrument sealed by the bishops of the dioceses concerned, also notify the persons referred to in subsection (2) hereof that the question whether or how those powers should be exercised is under consideration and thereupon the patron shall not be entitled to exercise his right of presentation to that benefice without such consent or consents as are specified in subsection (1) hereof and the requirement of section 1 of the Benefices (Exercise of Rights of Presentation) Measure 1931 that the vacancy or impending vacancy shall be notified by the bishop to the patron and the parochial church council shall, subject to the modifications made by section 69A of this Measure, apply”.

(4) In section 69(3) of the Measure (cessation of restriction), for the words “the last foregoing subsection” there shall be substituted the words “subsection (2) or (2A) of this section”, and for the words “section 3(6)” there shall be substituted the words “section 3A(1)”.

(5) Section 69(5) of the Measure (power to authorise lease of parsonage house where profits of benefice are sequestrated) shall be omitted.

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53.—(1) After section 69 of the Measure there shall be inserted the following section:—

"Modification of Benefices (Exercise of Rights of Presentation) Measure 1931 where presentation is suspended or restricted. 1931 No. 3.

Suspension, etc. of presentation: ancillary provision.

69A. Where the bishop declares a suspension period in respect of any benefice, or any restriction imposed by or under any provision of section 23 or 69 of this Measure comes into force with respect of any benefice,—

- (a) save as provided in this section no notice under section 1 of the Benefices (Exercise of the Rights of Presentation) Measure 1931 of a vacancy or impending vacancy in that benefice shall be given during the suspension period or, as the case may be, while the restriction is in force ;
- (b) any such notice relating to that benefice given before the suspension period began or, as the case may be, the restriction came into force shall be deemed to have been revoked and any act done under that Measure consequent upon that notice shall be of no effect ;
- (c) that benefice shall be deemed for the purposes of that Measure to become vacant immediately after the day on which the suspension period comes to an end or, as the case may be, the day on which the restriction ceases to be in force; and
- (d) upon the benefice being deemed to become vacant the bishop shall give to the patron and the parochial church council the notice required by section 1 of that Measure so however that if the suspension period will come to an end as a result of a notice given by the bishop under section 67(3) of Measure the notice referred to in the foregoing provisions of this section may be given by the bishop at the same time as the notice under the said section 67 (3) and in any other case the notice referred to in the foregoing provisions may be given not more than fourteen days before the suspension period will end or the restriction will cease to be in force as the case may be ”.

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(2) In section 73 of the Measure (suspension of new rights of patronage) for the words "section 3 (6)" there shall be substituted the words "section 3A (1)".

Charitable trusts.

54. After section 73 of the Measure there shall be inserted the following section:—

" Priest in charge to replace incumbent as trustee of certain charities during vacancy in benefice, etc.

73A.—(1) Where any property of a charity established for ecclesiastical purposes of the Church of England is vested in or under the management or control of the incumbent of a benefice (with or without other persons) or a corporation of which the incumbent of a benefice is a member, and the benefice becomes vacant or the bishop declares a suspension period in respect of the benefice, then, during the period of the vacancy or during the suspension period, as the case may be, the trusts of the charity or the constitution of the corporation shall have effect with the substitution for the incumbent of that benefice of the priest in charge of that benefice.

(2) Any change under subsection (1) of this section shall take effect without any conveyance or other assurance.

(3) The provisions of this section shall not apply to any fund or property for which provision is made under section 63 of this Measure."

Induction in one parish church of incumbent of benefices held in plurality.

55. After section 75(1) of the Measure there shall be inserted—

" (1A) Where, in a case not falling within paragraph 4(2A)(a) of the said Schedule 3, any person is appointed an incumbent of benefices which are to be held in plurality, the bishop may direct that the incumbent shall be inducted in such one of the parish churches in the areas of those benefices as he may specify, and after such induction the incumbent shall be deemed to have been inducted in all of the parishes churches in the said areas and to have been admitted to each of those benefices, and no further fees in respect thereof shall be payable."

Diocesan pastoral accounts.

56. In section 77(1) of the Measure (moneys to be transferred to diocesan pastoral accounts), the word "and" at the end of paragraph (b) shall be omitted and at the end there shall be inserted "and

(d) such other moneys as the bishop and the Diocesan Board of Finance for the diocese, after consultation with the Commissioners, direct the Commissioners to

accept for payment to the said account not being moneys for the application or disposal of which provision is made by or under any other enactment ”.

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57.—(1) In section 78(2) of the Measure (repayment out of diocesan pastoral account of certain expenditure), for the words from “ repay ” to “ Finance ” there shall be substituted the words “ and, if after consultation with the Commissioners the Diocesan Board of Finance so request, they shall, repay out of the diocesan pastoral account any money expended by them or the Board ”.

Payment of expenses from diocesan pastoral account and application of other moneys therein.

(2) In section 78(3) of the Measure (use of moneys in diocesan pastoral account for certain purposes), for the words “ it appears to the Commissioners there shall be substituted the words “ after consultation with the Diocesan Board of Finance, the Commissioners are satisfied ”, and for the words “ they may ” there shall be substituted the words “ then, subject to subsection (3A) of this section, they shall ”.

(3) After section 78(3) of the Measure, there shall be inserted—

“ (3A) Before making a request under subsection (3) of this section the Diocesan Board of Finance shall consult the Commissioners about the purposes for which the Board wish the said moneys to be used under that subsection, and only with the agreement of the Commissioners shall the Board be entitled to request that the moneys be transferred to a fund held or to be held on behalf of the diocese or any benefice or parish in the diocese, not being a fund held and administered by the Commissioners.”

58. After section 78 of the Measure there shall be inserted the following section:—

“ Diocesan Board of Finance to prepare account of payments into and out of diocesan pastoral account.

78A.—(1) Every Diocesan Board of Finance shall as soon as practicable after the end of each financial year of the Board prepare an account of the moneys paid into or out of the diocesan pastoral account during that year and shall include therein a statement of the amount by which the diocesan pastoral account was in debit or credit, as the case may be, at the beginning and end of that year.

Diocesan Board of Finance to prepare account of payments into and out of diocesan pastoral account.

(2) Every Diocesan Board of Finance shall send to the Commissioners annually a copy of the account prepared by the Board under this section duly audited and shall lay a copy thereof before the diocesan synod.”

59. Section 83(2) of the Measure (second copy of certain documents to be sent to parochial church council) shall be omitted.

Obligation to send copies of documents to certain persons abolished.

PART I

Amendment
of interpretation
provisions.

60.—(1) In section 90(1) of the Measure—

(a) for the definition of “Council for the Care of Churches” there shall be substituted—

“ ‘Council for Places of Worship’ means the body so named which exercises the functions previously exercised by the Council for the Care of Churches ”;

(b) in the definition of “interested parties” for the word “meaning” there shall be substituted the word “meanings”.

(2) At the end of section 90(4) of the Measure (construction of references to Acts, etc.), there shall be inserted the words “and any reference in this Measure to the Church Representation Rules shall be construed as a reference to those Rules as for the time being amended by any resolution of the General Synod passed in accordance with section 7(1) of the Synodical Government Measure 1969.

1969 No. 2.

Application to
private and
local Acts.

61. For section 93 of the Measure there shall be substituted the section set out in Part VI of Schedule 1 to this Measure.

Provision for
extension of
the Measure to
the Isle of
Man.

62. In section 96(2) of the Measure (extent) for the words “diocese of Sodor and Man” there shall be substituted the words “Isle of Man”, and at the end thereof there shall be inserted the words “and may be extended to the Isle of Man by Act of Tynwald”.

Amendments of Schedules 1 to 6 of the Measure

Constitution,
etc. of Pastoral
Committee.

63.—(1) In paragraph 5 of Schedule 1 to the Measure (appointment, etc. of certain members), for the words from “one-third”, where first occurring, to “laity” there shall be substituted the words “one half of all the members of the Committee shall be elected and that the number of members who are of the clergy and the number thereof who are of the laity shall as nearly as may be be the same”.

(2) In paragraph 10 of that Schedule (sub-committees and delegation thereto), after the words “Part I” there shall be inserted the words “or Part IV”, and for the words “the proviso to section 3(3)” there shall be substituted the words “section 3(5)”.

(3) After paragraph 10 of that Schedule there shall be inserted:—

“ 10A. Where in accordance with the said section 3(5) or (6) any person is to meet a sub-committee of the Committee, not less than two members of that sub-committee shall be members of the Committee.”

(4) Subsection (1) of this section shall not apply to any Pastoral Committee until the date of the election of members of that Committee next held after the commencement of this Measure.

PART I

64.—(1) For paragraphs 1 to 3 of Schedule 2 to the Measure there shall be substituted—

Amendments
relating to
appeals under
s. 8.

“ 1. Any person who intends to apply for leave to appeal to Her Majesty in Council under section 8 of this Measure shall on or before the date specified in the notice served on him under subsection (1) of that section send written notice of his intention to the Clerk of the Privy Council. The notice shall be sent by registered post or recorded delivery service and a copy thereof shall be sent to the Commissioners by the applicant.

1A. Where five or more persons acting jointly duly made written representations with respect to the draft scheme, notice of their intention to apply for leave to appeal under the said section 8, the application for such leave, and, if such leave is granted, the appeal, shall be given or made, as the case may be, by not more than four of those persons acting on behalf of themselves and the others.

2. If the Clerk of the Privy Council is satisfied that a notice under paragraph 1 above has been given by a person who duly made written representations with respect to the scheme in question, he shall transmit the notice to the Registrar of the Privy Council and shall notify the applicant and the Commissioners that he has done so. If he is not so satisfied he shall inform the applicant and the Commissioners that the applicant is not entitled to proceed with his application.

2A. Within the period of 28 days beginning with the date on which an applicant for leave to appeal under the said section 8 receives a notification under paragraph 2 above from the said Clerk he shall lodge in the registry of the Privy Council five copies of his application for such leave, and the application shall—

- (a) state the grounds of his appeal including a succinct statement of any reasons why he considers that the scheme in question, or any particular provision thereof, should not have been made ;
- (b) summarise succinctly and clearly any facts on which, if such leave is granted, he intends to rely in prosecuting his appeal.

There shall be annexed to each copy of the application a copy of the scheme and of the Commissioners' statement given to the applicant under section 8(1)(a) of this Measure.

PART I

3. The Judicial Committee of the Privy Council shall consider an application for such leave, and if it grants leave, the Registrar of the Privy Council shall forthwith register the appeal and notify the Clerk of the Privy Council, the applicant and the Commissioners that he has done so."

(2) In paragraph 4 of that Schedule for the words "of the order" there shall be substituted the words "that leave to appeal has been granted", and after the word "scheme" there shall be inserted the words "and of the Commissioners' statement given to the appellant under subsection (1)(a) of that section".

(3) After paragraph 5 of that Schedule there shall be inserted—

"5A. Except with the leave of the Judicial Committee of the Privy Council, no document shall be introduced in the course of the proceedings on the appeal unless it has been annexed to the petition or to the answer."

(4) In paragraph 8 of that Schedule, for the words from the beginning to "Schedule" there shall be substituted the words "Where an appellant, having been granted leave to appeal under the said section 8, fails to lodge his petition of appeal within a period of three months beginning with the date on which he received a notification under paragraph 3 above or such extended period as the Registrar of the Privy Council may allow".

(5) In paragraph 9 of that Schedule, for the word "is" there shall be substituted the word "are".

(6) At the end of that Schedule there shall be inserted—

"10. The Judicial Committee of the Privy Council may give such further directions in matters of practice and procedure affecting applications for leave to appeal, and appeals, under the said section 8 as they consider just and expedient."

Amendments
of certain
provisions
applicable to
matters arising
out of
pastoral
schemes, etc.

65. Schedule 3 to the Measure (supplementary provisions applicable to matters arising out of pastoral schemes and orders) shall have effect subject to the amendments set out in Schedule 2 to this Measure.

Compensation
of clergy.

66.—(1) After paragraph 2 of Schedule 4 to the Measure (circumstances in which incumbent designated, etc. first rector in team ministry entitled to compensation), there shall be inserted—

"2A. Where the incumbent of a benefice, being a benefice for the area of which a team ministry is established or

a benefice dissolved by a pastoral scheme, is designated or chosen as the first holder of any office of vicar in a team ministry, he shall, if he is required to vacate the office on the expiration of any term for which it is held, be entitled to compensation for any loss suffered by him in consequence thereof."

PART I

(2) In paragraph 3 of that Schedule (compensation for loss suffered in consequence of resignation), after the word "resignation", where last occurring, there shall be inserted the words "after the confirmation of the scheme by Order in Council or the making of the order, as the case may be".

(3) In paragraph 12(1)(c) of that Schedule (addition to pension in certain cases if total period of pensionable service is less than forty years), for the words "forty years", in both places where they occur, there shall be substituted the words "the prescribed period", the words from "but save" to the end shall be omitted and at the end of that sub-paragraph there shall be inserted—

"In this sub-paragraph 'the prescribed period', in relation to a person who is deemed to retire for the purposes of the said Measure and this paragraph, means the minimum period of pensionable service the performance of which by him would entitle him to a pension at the highest rate applicable in his case."

(4) After paragraph 12(1) of that Schedule there shall be inserted—

"(1A) The foregoing provisions of this paragraph shall apply in relation to any lump sum payable in accordance with any rules made under section 3 of the Clergy Pensions 1967 No. 1. (Amendment) Measure 1967 to a person entitled to a pension under the said Measure of 1961 as they apply in relation to a pension thereunder."

(5) For paragraph 12(2) of that Schedule there shall be substituted—

"(2) Compensation shall not be payable for any loss which the incumbent, archdeacon or vicar in a team ministry might suffer by reason of the provision in sub-paragraph (1)(b) above that on attaining the retiring age within the meaning of the said Measure of 1961 he is deemed to retire for the purposes of that Measure and this paragraph, and, except as provided by sub-paragraph (1)(c) above, compensation shall cease to be payable when he attains that age.

(3) In determining the amount of the compensation, if any, to which the incumbent, archdeacon or vicar in a team ministry is entitled under this Schedule in respect of any period before he retires or is deemed to retire for the pur-

PART I

poses of the said Measure of 1961 and this paragraph, any benefit which may accrue to him by virtue of sub-paragraph (1) above shall be disregarded.”.

(6) After paragraph 12(3) of that Schedule there shall be inserted—

“ (4) Without prejudice to section 90(4) of this Measure, any reference in this paragraph to the said Measure of 1961 shall be construed as a reference to that Measure, as amended by any regulations approved under section 6 of the Clergy Pensions (Amendment) Measure 1972.”.

1972 No. 5.

**Part III
statutory
bodies.**

67.—(1) In paragraph 5 of Schedule 5 to the Measure (Diocesan Redundant Churches Uses Committee)—

(a) in sub-paragraph (d), for the words from “ with ” to the end there shall be substituted the words “ after consultation with the Council for Places of Worship ”; and

(b) in sub-paragraph (e), for the word “ bishop ” there shall be substituted the words “ bishop’s council and standing committee of the diocese ”.

(2) After paragraph 7 of that Schedule there shall be inserted—

“ 7A. The bishop may appoint a member of the said Committee who is to have special responsibility for giving advice as to the manner in which the contents of any church to which a redundancy scheme applies shall be disposed of.”.

(3) For paragraph 11 of that Schedule (quorum, etc. of the said Committee) there shall be substituted—

“ 11. The quorum of the said Committee shall be three or such greater number as the Committee may determine, and the Committee shall regulate its own procedure.”.

**Amendments
of Schedule 6.**

68.—(1) In paragraph 1 of Schedule 6 to the Measure (notices to be given before human remains, monuments, etc. are removed)—

(a) after the word “ vested ” there shall be inserted the words “ or to whom it is leased or licensed ”, and

(b) after the word “ bishop ” there shall be inserted the words “ and on the Commonwealth War Graves Commission (hereinafter referred to as ‘ the Commission ’) ”.

(2) In paragraph 2(c) of that Schedule (contents of notice) after the word “ person ” there shall be inserted the words “ or in relation to any Commonwealth war burial, the Commission ”.

PART I

(3) In paragraph 3(1) of that Schedule (personal representatives, etc. of deceased may remove remains), after the word "land" there shall be inserted the words "or, in the case of any Commonwealth war burial, the Commission".

(4) In paragraph 3(2) of that Schedule (failure of representatives, etc. to remove remains), after the word "relatives" there shall be inserted the words "or the Commission".

(5) In paragraph 4 of that Schedule (reinterment or cremation in certain cases), after the word "person" there shall be inserted the words "or the Commission".

(6) After paragraph 5 of that Schedule there shall be inserted—

"5A. Any tombstone, monument or other memorial not disposed of in accordance with paragraph 3 or 5 above may with the agreement of the bishop given after consultation with the Diocesan Advisory Committee for the Care of Churches be allowed to remain where it is or be removed and re-erected in such place in the building or land as the bishop may direct."

(7) At the end of that Schedule there shall be inserted—

"11. In this Schedule 'commonwealth war burial' means a burial of any member of the forces of His Majesty fallen in the war of 1914-1921 or in the war of 1939-1947."

PART II

MISCELLANEOUS AND SUPPLEMENTAL

Power to establish new body to replace certain existing bodies

69.—(1) The Standing Committee of the General Synod may make an order—

Power to establish new body to replace the Advisory Board and the Redundant Churches Fund.

(a) establishing a body corporate by such name as may be specified in the order and constituting the body in accordance with subsection (3) of this section ;

(b) making such other provision with respect to the constitution, and such provision with respect to the finances, staff and procedure, of that body, as the Standing Committee considers expedient ;

(c) transferring to that body all functions, property, rights and liabilities which immediately before the order comes into operation are functions, property, rights and liabilities of the Advisory Board for Redundant Churches or the Redundant Churches Fund ;

PART II

- (d) dissolving the said Board and the said Fund on the day on which the order comes into operation ; and
- (e) making such modifications of the provisions of any enactment relating to the said Board or the said Fund as the Standing Committee considers are appropriate in consequence of the dissolution.

(2) Before making an order under this section the Standing Committee shall consult the Prime Minister and First Lord of the Treasury, the Secretary of State, the Archbishops of Canterbury and York, the Church Commissioners, the Advisory Board for Redundant Churches and the Redundant Churches fund.

(3) The body to be established by an order under this section shall consist of a chairman and such number of other members as may be specified in the order.

(4) The chairman of the body established by an order under this section and one half of the other members shall be appointed by Her Majesty on the advice of the Prime Minister and First Lord of the Treasury given after consultation with the Archbishops of Canterbury and York, and the remaining members shall be appointed by the said Archbishops acting jointly after consultation with the Prime Minister and First Lord of the Treasury ; but no Church Commissioner, no member of a committee constituted by or under the Church Commissioners Measure 1947 or appointed by the Board of Governors of the Church Commissioners and no member of the Standing Committee of the General Synod shall be eligible for appointment as the chairman or a member of that body.

(5) An order under this section may empower the body established by the order to pay out of its resources a salary to one of its members.

(6) An order under this section may be varied by a subsequent order thereunder.

(7) Every order under this section shall be laid before the General Synod and shall not come into operation unless and until it has been approved by the General Synod.

(8) The Statutory Instruments Act 1946 shall apply to any order approved by the General Synod under subsection (7) of this section as if it were a statutory instrument and were made when so approved, and as if this Measure were an Act providing that any such order shall not come into force unless or until it is approved by resolution of each House of Parliament.

1947 No. 2.

1946 c. 36.

Amendment of section 5(3) of Parsonages Measure 1938

PART II

70. At the end of section 5(3) of the Parsonages Measure 1938 (balance of moneys arising from sale, etc of benefice property to be allocated to capital account of diocesan stipends fund), there shall be inserted the words "or to the pastoral account of that diocese, or partly to the one and partly to the other, as the Diocesan Board of Finance may determine".

Application of moneys arising from sale, etc. of benefice property.
1938 No. 3.

Transitional provisions and repeals

71.—(1) The transitional provisions in Schedule 3 to this Measure shall have effect.

Transitional provisions and repeals.

(2) Subject to the provisions of the said Schedule 3 the provisions of the Pastoral Measure 1968 specified in column 1 in Schedule 4 to this Measure are hereby repealed to the extent specified in column 2.

Short title, extent and commencement

72.—(1) This Measure may be cited as the Pastoral (Amendment) Measure 198 .

Short title, extent and commencement.

(2) This Measure shall extend to the whole of the provinces of Canterbury and York except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957, or either of them, in accordance with those Measures and may be extended to the Isle of Man by Act of Tynwald.

1931 No. 5.
1957 No. 1.

(3) This Measure shall come into operation on such day as the Archbishops of Canterbury and York may jointly appoint, and different days may be so appointed for different provisions.

SCHEDULES

Sections 2, 6, 22,
24, 34 and 61.

SCHEDULE 1

SECTIONS TO BE SUBSTITUTED FOR SECTIONS 3, 7, 29, 31, 46 AND 93
OF THE PASTORAL MEASURE 1968

PART I

SECTIONS TO BE SUBSTITUTED FOR SECTION 3

Formulation
and submission
to bishop of
draft proposals.

3.—(1) Before deciding to make any recommendations to the bishop, the Pastoral Committee shall so far as may be practicable ascertain the views of the interested parties or, subject to subsection (7)(a) of this section, in the case of interested parties being local planning authorities, invite them to express their views.

(2) Subject to subsections (3) and (4) of this section, in this Part of this Measure “interested parties”, in relation to any recommendations, proposals or draft scheme or order, means—

- (a) incumbents of any benefices which would be affected by the implementing thereof, including vicars in a team ministry established for the area of any such benefice ;
- (b) the patrons of any such benefices ;
- (c) the parochial church councils of any parishes which would be so affected ;
- (d) the priests in charge of any conventional districts wholly or partly within the area of any benefices which would be so affected and the parochial church councils of such districts ;
- (e) the archdeacons and rural deans of any archdeaconries and rural deaneries which would be so affected or to which any such benefices or parishes belong and the lay chairmen of the deanery synods of any such deaneries ; and
- (f) the local planning authority or authorities concerned.

For the purposes of this subsection a change in the patronage of a benefice shall be deemed to affect that benefice and the parish or parishes thereof.

(3) In this Part of this Measure, “interested parties”, in relation to any recommendations, proposals, draft scheme or order which are or is limited to creating, altering or dissolving archdeaconries or rural deaneries, or altering the name of any archdeaconry or rural deanery, means—

- (a) the parochial church councils of any parishes for which a change of archdeaconry or deanery, or an alteration of the name thereof, is contemplated or proposed and the parochial church councils of any conventional districts wholly or partly within such parishes ;
- (b) the incumbents of benefices to which such parishes belong and the priests in charge of such districts ; and

(c) the archdeacons and rural deans of the archdeaconries and deaneries affected and the lay chairmen of the deanery synods of such deaneries.

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(4) In the case of proposals and orders under section 13, the local planning authority or authorities shall not be included among the interested parties.

(5) In the case of interested parties, being incumbents or vicars in a team ministry, the Pastoral Committee shall, before reaching their decision, afford to each incumbent or vicar, if he so desires, an opportunity of meeting the Committee or sub-committee or representative thereof, but, in the case of a recommendation for a union of benefices or otherwise for the dissolution of any benefice or the holding in plurality of any benefice or benefices, or the establishment of a team or group ministry for any benefice or benefices, or the abolition of any office of vicar in a team ministry, the incumbent of the benefice or each of the benefices or the holder of the office of vicar shall have an opportunity of meeting the Committee itself (as distinct from a sub-committee or representative thereof), if he so desires.

(6) In the case of interested parties, being parochial church councils, the Committee shall, before reaching their decision, afford to each council or their representative, if the council so request, an opportunity of meeting the Committee or, if the Committee so decide, a sub-committee thereof or, with the consent of the council, a representative of the Committee.

(7) Before deciding to make a recommendation that a declaration of redundancy be made in respect of any church the Committee shall—

- (a) ascertain the views of any local planning authority or authorities concerned ;
- (b) notify the Council for Places of Worship of the church or churches in respect of which the Committee might decide to make such a recommendation and obtain from them a copy of the report which the Council are required to prepare under subsection (8) of this section.

(8) As soon as practicable after receiving a notice under subsection (7) of this section the said Council shall prepare a report about—

- (a) the historic and architectural qualities of each church mentioned in the notice and of other churches in the area;
- (b) the historic and aesthetic qualities of the contents of that and those churches ;
- (c) any special features of any churchyard or burial ground annexed to any of them ;

and shall send a copy of that report to the Commissioners, the Diocesan Board of Finance and the Committee.

(9) When the Committee have decided to make recommendations, they shall formulate them in draft proposals and submit them to the bishop, and the bishop may, with the agreement of the Committee, make such amendments of the draft proposals as appear to him desirable.

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The Committee shall annexe to the draft proposals a statement of the views of the interested parties and, if those proposals include a proposal that a declaration of redundancy be made in respect of any church, the Committee shall annexe a copy of the report prepared by the said Council under subsection (8) of this section to the draft proposals.

(10) In this section "incumbent", in relation to a benefice in respect of which a suspension period has been declared and is for the time being in force, means the priest in charge thereof.

3A.—(1) If the bishop approves either with or without amendments draft proposals submitted to him under section 3(9) of this Measure, he shall submit the proposals as approved to the Commissioners and inform the Pastoral Committee that he has done so.

(2) The Pastoral Committee shall send a copy of the proposals as approved by the bishop to every interested party with a notice informing him—

- (a) that if the Commissioners prepare a draft scheme or order to give effect to the proposals he will be given an opportunity of making representations with respect thereto; but
- (b) that any interested party, other than a parochial church council, may by notice in writing served on the Commissioners relinquish his right to receive a copy of the draft and the notice specifying the period within which representations may be made.

PART II**SECTION TO BE SUBSTITUTED FOR SECTION 7**

Submission of
proposals to the
Commissioners.

7.—(1) Where the Commissioners, having, considered the representations (if any), are of opinion that any such draft scheme should be made, and do not propose to amend or further amend it under section 6 of this Measure, they shall submit it to the bishop for his consent and, when he has given his consent, they shall seal a copy of the draft scheme and so make the scheme, and shall submit it for confirmation by Her Majesty in Council.

(2) Where no representations with respect to any such draft order have been made, the Commissioners shall seal a copy thereof and submit it to the bishop.

(3) Where representations with respect to any such draft order have been made, then, unless—

- (a) as a result of those representations, the Commissioners decide that the order should not be made, or
- (b) the Commissioners propose to amend or further amend the draft order under the said section 6,

they shall seal a copy thereof and submit it to the bishop.

(4) Where a copy of an order is submitted to the bishop under this section, he may by applying his seal thereto make the order.

PART III**SCH. 1****SECTION TO BE SUBSTITUTED FOR SECTION 29**

29.—(1) Where a parish has no church, the bishop shall make ^{Places of} provision for public worship according to the rites and ceremonies worship. of the Church of England by licensing one or more buildings or parts of buildings in the parish for such worship.

(2) The bishop may designate any church in any parish, other than a parish church, or any building or part of a building licensed for public worship in any parish, as a parish centre of worship and thereupon, but subject to subsections (3) and (4) of this section, for the purposes of—

(a) the Marriage Act 1949 and paragraph 14 of Schedule 3 to 1949 c. 76. this Measure,

(b) any other enactment, provision of a Measure (including this Measure), rule or law requiring or authorising any service or ceremony to be held or notices to be affixed or other thing done in or at the parish church or a parish church, and

(c) paragraph (e) of section 27(3) of this Measure,

a church, building or part of a building so designated shall be deemed, while the designation is in force, to be a parish church.

(3) Where a church, building or part of a building in a parish has been so designated and the parish has no parish church, then, if the persons to be married so elect, they may proceed under sections 6 and 15 of the Marriage Act 1949 (which contain provisions whereby parishes in which there is no parish church are deemed to belong to adjoining parishes) as if the church, building or part had not been so designated; and this subsection shall have effect notwithstanding that there is in the parish a church or chapel licensed for marriages or a church or chapel in which divine service is usually solemnized every Sunday.

(4) A building or part of a building so designated shall not by virtue only of the designation be subject to the faculty jurisdiction, but without prejudice to the power of the bishop under section 6 of the Faculty Jurisdiction Measure 1964 to direct that it shall be 1964 No. 5. so subject.

(5) A designation under this section may be revoked by the bishop, but without prejudice to the continuation in force of any licence thereunder, if the bishop thinks fit.

(6) Any such designation or revocation thereof shall be under seal and shall be registered in the registry of the diocese, and the registrar of the diocese shall give public notice thereof in one or more newspapers circulating in the locality.

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PART IV

SECTION TO BE SUBSTITUTED FOR SECTION 31

Parsonage
houses.

31.—(1) A pastoral scheme may provide for any of the following matters—

- (a) the designation of any house belonging to a benefice as the place of residence of the incumbent of any benefice created or affected by the scheme or of the incumbent of any benefices to be held in plurality by virtue of the scheme ;
- (b) the designation of any house as the place of residence of any vicar in a team ministry established for the area of any benefice by the scheme ;
- (c) the transfer to the incumbent of any benefice as his official residence, or as a site therefor, of a parsonage house, part of a parsonage house, a house situated on diocesan glebe land, any parsonage land or any diocesan glebe land ;
- (d) the transfer of a parsonage house, part of a parsonage house or any parsonage land to the Diocesan Board of Finance to be held by the Board as part of the diocesan glebe land of the diocese or for disposal in accordance with paragraph 9 of Schedule 3 to this Measure or for use for parochial or diocesan purposes.

(2) The power under paragraph (a) or (b) of the preceding subsection to designate a house as the place of residence of an incumbent or a vicar in a team ministry shall be without prejudice to the subsequent exercise of any power to dispose of the house or to the subsequent exercise by the bishop of any power he may have to give directions as to the place where the incumbent or vicar is to reside.

(3) Where in exercise of the power under paragraph (d) of subsection (1) of this section a parsonage house or part thereof is to be transferred to the Diocesan Board of Finance, but any land held with that house is not to be so transferred, the pastoral scheme which provides for the transfer may also provide that that land shall be deemed to be parsonage land for the purposes of the Endowments and Glebe Measure 1976.

(4) In this section “diocesan glebe land” and “parsonage land” have the same meanings respectively as in the said Measure of 1976.

PART V

SECTION TO BE SUBSTITUTED FOR SECTION 46

Provision by
pastoral scheme
for
appropriation
or demolition
of redundant
church to be
replaced by new
church.

46.—(1) Where the Commissioners are satisfied that a new church or place of worship is to be provided in the area of a benefice to take the place of a church or churches in that area which should thereupon be declared redundant, then, if any one of the four conditions set out in subsections (3) to (6) of this section is fulfilled as respects the church or any of the churches to be declared redundant, a pastoral scheme which makes a declaration of redundancy in respect of that church may further provide—

- (a) for the appropriation of the redundant building in accordance with section 51(1)(a) or for its demolition, and for any of the matters mentioned in section 51(2) or (3) of this Measure ;

- (b) for the payment to the Commissioners of the proceeds of any sale or exchange of the building or the site thereof, or any part of the building or site, with or without any land annexed or belonging thereto, and the premiums on any lease or licence of the building or site or any part of the building or site with or without any such land; and
- (c) subject to subsection (8) of this section, for the application of the net proceeds and net premiums to defray the cost of providing the new church or place of worship aforesaid and, if the whole amount thereof is not required for that purpose, for the payment of two-thirds of the balance to the diocesan pastoral account and for the application by the Commissioners of the remaining one-third in accordance with section 52 of this Measure.

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(2) A pastoral scheme which provides for the demolition of a redundant building may provide for its demolition by the Diocesan Board of Finance, and in that case subsection (1)(a) of this section shall have effect as if the reference therein to section 51(3) of this Measure were a reference to that subsection modified by substituting for the words "the Commissioners", wherever occurring, the words "the Diocesan Board of Finance."

(3) The first condition referred to in subsection (1) is that the Commissioners have been advised by the Advisory Board that the Board are satisfied that the church to be declared redundant is of such small historic and archaeological interest, or has such little architectural quality, or requires such extensive structural repair, that the demolition of that church would not in their opinion be objectionable on any or all of those grounds.

(4) The second such condition is that the Commissioners have been advised by the Advisory Board that the Board are satisfied with a proposal to preserve features of historic or architectural interest of the church to be declared redundant by incorporating them in the new church or place of worship or some other building.

(5) The third such condition is that the Commissioners, having considered the advice given by the Advisory Board and notwithstanding that advice, are satisfied that for reasons regarded by them as sufficient the demolition of the church to be declared redundant should be authorised.

(6) The fourth such condition is that the Commissioners, having considered the advice given by the Advisory Board, are satisfied that a suitable use or uses will be available for the church to be declared redundant when the declaration takes effect.

(7) Where a pastoral scheme makes such provision as is mentioned in subsection (1) of this section, the declaration of redundancy shall not take effect until the new church or place of worship is provided unless the Commissioners are satisfied that, if the church or any of the churches to be replaced is disposed of or demolished before such provision, a suitable building will be available in the interim period, not necessarily in the same parish, for use in place of that church.

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1969 c. 38.

(8) Where before a declaration of redundancy is made by a pastoral scheme under this section in respect of a church which was the subject of a sharing agreement under the Sharing of Church Buildings Act 1969 and which on the termination of the agreement was vested in an incumbent by section 9(3) of that Act, any contribution in the nature of capital made in accordance with the agreement by any party thereto, other than a party acting on behalf of the Church of England, or so much thereof as the Commissioners may determine, may be repaid to that party by the Commissioners out of the proceeds of any sale or exchange, or the premiums on any lease or licence, of that church, any part of that church or the site thereof before the net proceeds or net premiums, as the case may be, are applied in accordance with subsection (1)(c) of this section.

(9) References in this section to the provision of a new place of worship shall be construed as including references to the provision of such a place by adapting, improving or repairing an existing building.

(10) In this section "place of worship" means a building licensed by the bishop for public worship in accordance with the rites and ceremonies of the Church of England, being a building used wholly for the purposes of such worship and purposes ancillary thereto, or partly for those purposes and partly for other ecclesiastical purposes of the parish or purposes ancillary thereto, and includes a building which, pursuant to an agreement under the Sharing of Church Buildings Act 1969, is to be used as a place of worship jointly with another church and is to be owned by the Church of England only or to be jointly owned by that Church and any other Church.

PART VI

SECTION TO BE SUBSTITUTED FOR SECTION 93

Churches, etc.
affected by
private and
local acts.

93.—(1) Subject to subsection (4) of this section, the provisions of this Measure, and in particular those relating to redundant churches, shall apply to—

- (a) churches affected by any private or local Act passed before the commencement of this Measure ;
- (b) land comprising the sites of such churches or annexed or belonging to such churches ; and
- (c) any burial ground which is affected by any such Act and is vested in the incumbent of a benefice or is subject to the jurisdiction of the bishop of any diocese ;

and a scheme made under this Measure may amend or revoke any provision of a private or local Act so passed, if it appears to the Commissioners that the provision of the Act is inconsistent with or rendered unnecessary by the provisions of the scheme or the provisions of this Measure applicable thereto.

(2) Where any private or local Act passed before the commencement of this Measure provided for the erection of a new church, with or without other buildings and accommodation, and the bishop of

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the diocese in which the church was to be erected is satisfied, after consultation with the Pastoral Committee, that it is no longer expedient for a new church and other buildings and accommodation to be erected as provided by the Act or that a place of worship should be provided instead of that church, a pastoral scheme may provide for any or all of the following—

- (a) for the erection on the land on which the church and any other buildings or accommodation were to be erected of a building suitable for licensing by the bishop as a place of worship ;
- (b) for empowering any person in whom that land is vested to sell, lease or otherwise dispose of it, or any part thereof, in such manner and upon and subject to such terms as the scheme may provide ;
- (c) for specifying the purposes for which any moneys received as a result of any such disposal are to be applied ;

and any provisions of the Act relating to the erection of the new church and other buildings or accommodation, and any other provisions thereof which are inconsistent with, or rendered unnecessary by, the provisions of the scheme, may be amended or revoked by the scheme.

In this subsection “ place of worship ” has the same meaning as in section 46 of this Measure.

(3) Section 3(1) of this Measure shall have effect in relation to the recommendations for a scheme proposed to be made by virtue of subsection (2) of this section as if the words from “ or, subject ” to the end were omitted.

(4) If it appears to the Commissioners that a proposed pastoral scheme or redundancy scheme will affect the rights (other than the patronage rights) of any person under any such private or local Act as is referred to in subsection (1) or (2) of this section, they shall, in the case of a pastoral scheme, serve a copy of the draft scheme on that person together with such a notice as is mentioned in section 5(1) of this Measure, and he shall thereafter be deemed to be an interested party in relation to that scheme, and, in the case of a redundancy scheme, they shall serve a copy of the draft scheme on that person under section 50(3) of this Measure.

SCHEDULE 2

Section 65.

AMENDMENTS OF SCHEDULE 3 TO THE PASTORAL MEASURE 1968

1.—(1) In paragraph 1(1) (presentation of rector of team ministry), at the beginning there shall be inserted the words “ Subject to sub-paragraph (1A) below ”, and for the proviso there shall be substituted the following sub-paragraph—

“ (1A) Sub-paragraph (1) above shall not apply in relation to a benefice of which the bishop is the sole patron, but in that case the pastoral scheme establishing a team ministry for that benefice may provide as mentioned in that sub-paragraph, and

SCH. 2 if the scheme does not so provide, the bishop shall choose the rector, other than the first rector, if designated by the scheme, to whom he collates the benefice."

1931 No. 3. (2) At the end of paragraph 1(2) (Benefices (Exercise of Rights of Presentation) Measure 1931 and certain other enactments, etc. to apply to any presentation or collation under paragraph 1), there shall be inserted the words "and before the patronage board or the Diocesan Board of Patronage exercise their right of presentation or the bishop exercises his right of collation, thereunder they or he, as the case may be, shall consult the other members of the team".

(3) In paragraph 1(3) (constitution of patronage board), after the word "other" there shall be inserted the words "member or", and after that sub-paragraph there shall be inserted—

"(3A) Without prejudice to the generality of sub-paragraph (3) above, such a scheme may provide for empowering the bishop to appoint one or more persons, but not exceeding the number specified in the scheme, to be a member or members of the board for such period as the bishop may specify when making the appointment."

(4) After paragraph 1(4) (member of board may be represented by another person at meetings of the board) there shall be inserted—

"(4A) Subject to paragraph 1A(3) of this Schedule, a pastoral scheme by which a patronage board is constituted may provide that any member of the board specified in the scheme shall be entitled to such number of votes as may be so specified and that where there is an equal division of votes the bishop, as chairman, shall have a casting vote, but except in so far as the scheme so provides, each member of the board shall be entitled to one vote."

(5) In paragraph 1(6) (presentation of rector by Diocesan Board of Patronage), for the words from "being" to the end there shall be substituted the words "rights to attend and vote at the meetings of the Board at which the person to be presented is considered and chosen, and regard shall be had in determining the persons to whom those rights are to be given to the interests of the persons mentioned in sub-paragraph (3) above, but it shall not be necessary, in cases where there are pastoral or practical objections, for those persons or all of them to be given those rights."

(6) In paragraph 1(7) (rights to be members of patronage board, etc. to be transferable), for the words "shall be" to "saleable and" there shall be substituted the words "shall, except where such rights are vested in a person in right of his office or only for life or a term of years, be transferable inter vivos and on death, but in no case shall such rights be saleable and they".

2. After paragraph 1 there shall be inserted—

"1A.—(1) A pastoral scheme establishing a team ministry which provides for the presentation of the rector by a patronage board constituted by the scheme or by the Diocesan Board of

Patronage may provide for the vicars in that ministry, other than the first holder of any office of vicar therein, if designated by the scheme, to be chosen by the same body.

SCH. 2

(2) Where such a scheme provides as aforesaid, the rector of the team ministry and every vicar therein shall have the right to attend and vote at the meetings of the patronage board or the Diocesan Board of Patronage, as the case may be, at which the person to be appointed a vicar in that ministry is considered and chosen.

(3) Where there are two or more vicars in a team ministry, those vicars shall only be entitled to one vote, which shall be exercised by such one of them or such two or more of them (acting jointly) as may be present at any such meeting.

(4) Where such a scheme does not provide as aforesaid, the vicar or vicars in the team ministry, other than the first holder of any office of vicar therein, if designated by the scheme, shall be chosen by the bishop and the rector jointly.

(5) Before the body or other persons who are entitled to choose a person to be a vicar in a team ministry make their choice, they shall consult—

- (a) the other members of the team ;
- (b) the parochial church council of every parish belonging to the benefice for the area of which the team ministry was established ; and
- (c) if a special cure of souls in respect of a part of the area is to be assigned in accordance with section 19(7)(a) of this Measure to the vicar, any district church council concerned.”.

3. In paragraph 2(1) (presentation of incumbent of benefice in a group ministry), after the word “incumbents” there shall be inserted the words “(including any priests in charge)”.

4. For sub-paragraphs (2) to (5) of paragraph 3 (provisions relating to district church councils, group councils, etc.) there shall be substituted—

“(2) Where a pastoral scheme establishes a team ministry for the area of a benefice which comprises a parish in which there are two or more churches or places of worship, the scheme may make provision, or authorise the bishop by instrument under his hand with the concurrence of the rector to make provision—

- (a) for ensuring due representation of the congregation of each such church or place on the parochial church council of the parish.
- (b) for the election of a district church council for any district in the parish in which such church or place is situated and for the constitution, chairmanship and procedure of that council.

SCH. 2

- (c) for the functions of the parochial church council of the parish which must or may be delegated to the district church council,
- (d) for the election or choice of deputy churchwardens for such church or place and for the functions of churchwardens of the parish which must or may be delegated to the deputy churchwardens,

being provisions to the same effect as those which may be made by a scheme under the Church Representation Rules in the like case.

In this sub-paragraph "place of worship" means a building or part of a building licensed for public worship according to the rites and ceremonies of the Church of England.

(3) Where a pastoral scheme establishes a team ministry for the area of a benefice which comprises more than one parish, the scheme may make provision, or authorise the bishop by instrument under his hand with the concurrence of the rector to make provision,

- (a) for the establishment of a team council ;
- (b) for the chairmanship, meetings and procedure of the team council ; and
- (c) for the function of the parochial church council of each parish in the area which must or may be delegated to the team council,

being provisions to the same effect as those which may be made by a scheme under the Church Representation Rules in the like case.

(4) Where a pastoral scheme establishes a group ministry, the scheme may make provision, or authorise the bishop by instrument under his hand with the concurrence of all the members of the group to make provision,

- (a) for the establishment of a group council ;
- (b) for the chairmanship, meetings and procedure of the group council ; and
- (c) for the functions of the parochial church council of each parish in the area for which the group ministry is established which must or may be delegated to the group council,

being provision to the same effect as those which may be made by a scheme under the Church Representation Rules in the like case.

(5) Any provisions which are included in a pastoral scheme or the bishop's instrument by virtue of sub-paragraph (2), (3) or (4) above shall cease to have effect at the expiration of such period as may be specified in the scheme or instrument, as the case may be, being a period which does not exceed five years from the date of the establishment of the team ministry or group ministry to which the pastoral scheme or instrument of the bishop relates, and that period may not be extended or renewed by a subsequent scheme or instrument.

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(6) Any provisions which were included in a pastoral scheme or bishop's instrument by virtue of sub-paragraph (2) or (4) of this paragraph, as originally enacted, shall cease to have effect at the expiration of whichever of the following periods last expires, that is to say, the period of five years beginning with the date of the establishment of the team ministry or group ministry to which the scheme or instrument relates and the period of three years beginning with the date on which paragraph 4 of Schedule 2 to the Pastoral (Amendment) Measure 198 came into operation”.

5.—(1) In paragraph 4(1) (designated incumbent not required to be presented), for the words “or collated to that benefice” there shall be substituted the words “to that benefice nor shall the bishop be required to nominate that person as the person to whom he collates the benefice”.

(2) For paragraph 4(2) (case in which first incumbent of new benefice deemed to have been admitted thereto) there shall be substituted—

“ (2) Where a pastoral scheme creates a new benefice or establishes a team ministry for the area of a benefice, then—

(a) if the first incumbent of that new benefice or the first rector of that ministry is designated or selected as aforesaid, he shall, unless the bishop otherwise directs, be deemed to have been admitted to that new benefice or to the benefice for the area of which the team ministry is established, as the case may be, and no fees in respect thereof shall be payable ;

(b) in any other case section 75(1) of this Measure shall apply.

(2A) Where a pastoral scheme or order provides for the holding in plurality of two or more benefices, then—

(a) if the first incumbent who is to hold all the benefices concerned was immediately before the scheme or order comes into operation the incumbent of any of those benefices, he shall, unless the bishop otherwise directs, be deemed to have been admitted to the other benefice or benefices, and no fees in respect thereof shall be payable ;

(b) in any other case section 75 (1A) of this Measure shall apply.”

6. In paragraph 6(5) (vesting of property transferred by pastoral scheme or order), after the word “discharged” there shall be inserted the words “in the case of property consisting of diocesan glebe land or a house situated on such land, from the previously existing trust in favour of the diocesan stipends fund and, in the case of any other property”.

7.—(1) In paragraph 9(1) (powers of Diocesan Board of Finance to which property is transferred for disposal), the words “or section 33” shall be omitted and at the end there shall be inserted the words

SCH. 2 "and power to demolish any building or part thereof so transferred".

(2) In paragraph 9(3) (provisions applicable where property is so transferred)—

- (a) the words "the provision of a church or" shall be omitted;
- (b) after the word "church" there shall be inserted the words "or a place of worship within the meaning of section 46 of this Measure"; and
- (c) for the words from "(a)" to the end there shall be substituted the words "the net proceeds shall be paid into the capital account of the diocesan stipends fund or into the diocesan pastoral account, or partly into the one and partly into the other, as the Diocesan Board of Finance may determine or as the scheme may provide".

8. At the end of paragraph 10(1) (crediting by the Commissioners of sums to diocesan fund or account), there shall be inserted the words "and shall allow interest at such rate as they may determine upon all sums credited to a diocesan pastoral account".

9. After sub-paragraph (2) of paragraph 11 (modification of church and parochial trusts) there shall be inserted—

"(2A) Where—

(a) any property of a charity established for the purposes aforesaid is vested in or under the management or control of the incumbent of a benefice (with or without other persons) or a corporation of which the incumbent of a benefice is a member, and

(b) a team ministry is established by a pastoral scheme for an area comprising the whole or major part of the area of that benefice.

then, if a special cure of souls in respect of a part of the area for which that ministry is established, being a part which consists of the first mentioned benefice or a major part of the area thereof, is assigned by the scheme or the bishop's licence to a vicar in the team ministry, the trusts of the charity or the constitution of the corporation shall have effect with the substitution for the incumbent of that benefice of that vicar, but, except as aforesaid, those trusts and that constitution shall (where necessary) have effect with the substitution for that incumbent of the rector of the team ministry."

10. For sub-paragraphs (1) to (3) of paragraph 12 (provisions which apply where a new parish is created by a pastoral scheme), there shall be substituted—

"(1) A pastoral scheme which creates a new parish may make provision, or authorise the bishop by instrument under his hand to make provision, for ensuring that the congregation of every church or place of worship in the new parish will have its own elected representatives of the laity on the parochial church council of that parish.

SCH. 2

(2) Any provision included in a pastoral scheme or the bishop's instrument by virtue of sub-paragraph (1) above shall cease to have effect at the expiration of such period as may be specified in the scheme or instrument, as the case may be, being a period which does not exceed five years beginning with the date on which the new parish comes into being, and that period may not be extended or renewed by a subsequent pastoral scheme or instrument of the bishop.

(3) Any such provision shall have effect notwithstanding anything in the Church Representation Rules."

11. For paragraph 13 there shall be substituted—

"13.—(1) Where a pastoral scheme provides for two or more parishes to be comprised in the area of a single benefice or a pastoral scheme or order provides for two or more benefices to be held in plurality, the scheme or order may make provision, or authorise the bishop by instrument under his hand with the concurrence of the incumbent of the benefice or benefices to make provision,—

- (a) for establishing a joint parochial church council for all or some of the parishes of the benefice or benefices ;
- (b) for the chairmanship, meetings and procedure of that council ; and
- (c) for the functions of the parochial church council of any such parish which must or may be delegated to the joint parochial church council,

being provisions to the same effect as those which may be made by a scheme under the Church Representation Rules in the like case.

(2) Subject to sub-paragraph (4) below, any provisions which are included in a pastoral scheme or order or the bishop's instrument by virtue of sub-paragraph (1) above shall cease to have effect at the expiration of such period as may be specified in the scheme, order or instrument, being a period which does not exceed five years from the date on which the scheme or order, as the case may be, came into operation, and that period may not be extended or renewed by a subsequent pastoral scheme, pastoral order or instrument of the bishop.

(3) Subject to sub-paragraph (4) below, any provisions which were included in a pastoral scheme or order by virtue of this paragraph, as originally enacted, shall cease to have effect at whichever of the following periods last expires, that is to say, the period of five years beginning with the date of the establishment of the joint parochial church council to which the scheme or order relates and the period of three years beginning with the date on which paragraph 11 of Schedule 2 to the Pastoral (Amendment) Measure 1982 came into operation.

(4) Where the provisions of a pastoral scheme or order for the holding of benefices in plurality are terminated under section 17 (2) of this Measure, any provision of a pastoral scheme or order or the bishop's instrument establishing a joint parochial church council for all or some of the parishes of those benefices and the other

SCH. 2 provisions thereof affecting that council shall cease to have effect on the date on which the first mentioned provisions ceases to have effect."

12. After sub-paragraph (2) of paragraph 14 (provisions with respect to marriages, etc.) there shall be inserted—

"(2A) Where a declaration of redundancy is made in respect of a chapel of ease, any licence relating to that chapel granted under section 20 of the Marriage Act 1949 (licensing of chapels for publication of bans of matrimony, etc.) shall be deemed to have been revoked under that section."

1949 c. 76.

13. In paragraph 15(2) (burial rights where new benefice is created for a new parish), for the words "of a new benefice for" there shall be substituted the words "otherwise than by union of".

14. In paragraph 16(3) (adjustment by Commissioners of certain accounts, etc. consequent upon alteration of diocesan boundaries), after the word "scheme" there shall be inserted the words "or order" and after the word "affected" there shall be inserted the words "after consultation with the Diocesan Board of Finance of each of those dioceses".

Section 71(1).

SCHEDULE 3

TRANSITIONAL PROVISIONS

1. When any pastoral scheme or pastoral order is pending at the commencement of this Measure, the following provisions of the Measure, as in force immediately before the said commencement, that is to say, sections 3 to 8, those sections as applied by section 12(5) or 13(5) and the interpretation provision so far as they relate to the said sections, shall continue to apply for the purpose of completing the proceedings on the scheme or order up to and including the confirmation of the scheme by Her Majesty in Council or the making of the order, as the case may be.

2. Where a pastoral scheme is pending at the said commencement, being a scheme by which it is proposed to provide for the establishment of a team ministry for the area of any benefice, section 19(1) of the Measure shall continue to apply, and section 14(1) of this Measure shall not apply, to that scheme.

3. Notwithstanding the repeal of section 26 of the Measure by this Measure, a pastoral scheme or pastoral order which is pending at the said commencement may provide as mentioned in that section.

4.—(1) Section 27(1) of the Measure, as originally enacted, shall continue to apply to a new parish created by a pastoral scheme made before the said commencement, a parish altered by a scheme so made and the churches in any such parish.

(2) Notwithstanding the repeal of section 27(4) and (5) of the Measure by this Measure, a pastoral scheme which is pending at the said commencement may provide as mentioned in those sub-sections and a pastoral order which is pending at the said commencement may provide as mentioned in section 27(4).

5.—(1) Any provision which could have been made by virtue of section 31 of the Measure, as in force immediately before the said commencement, may be made by a pastoral scheme which is pending at the said commencement.

(2) Sub-paragraph (1) shall apply in relation to a pastoral order as it applies in relation to a pastoral scheme with the substitution for the reference to section 31 of a reference to section 38(i).

6. A provision which could not have been made by a pastoral order under the Measure as in force immediately before the said commencement shall not be included in a pastoral order which is pending at the said commencement.

7. Section 69(1) of the Measure, as originally enacted, shall continue to have effect, and section 51(1) of this Measure shall not have effect, where the proposals referred to in that sub-section were submitted to the Commissioners before the said commencement.

8.—(1) Paragraph 12(1)(c) and (2) of Schedule 4 to the Measure shall continue to have effect, and section 65(3) and (5) of this Measure shall not have effect, for the purpose of determining the right of any person to compensation under that Schedule or section 13 of the Incumbents (Vacation of Benefices) Measure 1977 and 1977 No. 1. the amount thereof, where the event in consequence of which that person suffered loss giving a right to such compensation occurred before the commencement of this Measure.

(2) In this paragraph the expression the "event" means in a case falling within the Measure the date when proposals were submitted to the Commissioners under part I of that Measure and in a case under the Incumbents (Vacation of Benefices) Measure the date when a request is made under part I of that Measure for an enquiry.

9. For the purposes of this Schedule a pastoral scheme or pastoral order shall be deemed to be pending at the commencement of this Measure if it has at least reached the following stage of the procedure applicable to that scheme or order, that is to say, the submission to the Commissioners—

- (a) under section 3(6) of the Measure, as originally enacted, or under that sub-section as applied by section 13(5) thereof, of proposals approved, or, as the case may be, formulated, by the bishop;
- (b) under the said section 3(b), as applied by section 12(5) of the Measure, of proposals approved by the bishops of the dioceses concerned.

Section 71(2).

SCHEDULE 4

PROVISIONS OF THE PASTORAL MEASURE 1968 REPEALED

<i>Provision</i>	<i>Extent of Repeal</i>
Section 2 ...	... In subsection (1), the words " Part II or Part III of ".
Section 4 ...	... In subsection (3), the words " Part II or Part III of ".
Section 8 ...	... Subsection (8).
Section 9 ...	... Subsection (1).
Section 10 ...	... In subsection (1), the words " and notified in the London Gazette as aforesaid " and the words " and notified as aforesaid ".
Section 11 ...	... In subsection (1)(b), the words from " and, if " to the end.
Section 13 ...	... In subsection (1), the words from " for " to " proposals ", where next occurring, and subsections (3) to (5).
Section 19 ...	... In subsection (4), paragraph (c) and in subsection (11), the words " the cure of souls in ".
Section 20 ...	... In subsection (6), the words " and the provisions of Schedule 3 therein referred to ".
Section 23 ...	... In subsection (1), the words " by the union of two or more benefices ".
Section 26 ...	... The whole section.
Section 27 ...	... Subsections (4) and (5).
Section 28 ...	... In subsection (1), the words " the Commissioners are satisfied " in both places where they occur.
Section 33 ...	... In subsection (3), the words " the endowments " or " and in subsection (5), the word " whether " and the words " or otherwise ".
Section 37 ...	... The whole section.
Section 38 ...	... Paragraph (g) and in paragraph (i), the words " and assistant curates ".
Section 42 ...	... In subsection (6), the words " demolished or ",
Section 44 ...	... In subsection (1), the words " which may include persons who are not Commissioners ",
Section 51 ...	... In subsection (5), the words from " and " to the end.
Section 65 ...	... In subsection (3), the word " demolition ", where last occurring.
Section 67 ...	... In subsection (5)(b), the words from " (unless " to " patron) ".
Section 68 ...	... In subsection (2), the words from " (if " to " patron) ".
Section 69 ...	... Subsection (5).
Section 83 ...	... Subsection (2).
Schedule 3 ...	... In paragraph 9(1), the words " or section 33 " and in paragraph 9(3), the words " the provision of a church or ".
Schedule 4 ...	... In paragraph 12(1)(c), the words from " but serve " to the end.